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Solicitation/Contract Form

Deployment Solutions

Product Service Code: DA01

Supplies or Services & Prices or Costs

Additional Information/Notes

Awardees will share a total contract ceiling of \$300,000,000.00 inclusive of the base and option years.

This solicitation is released after 9 March 2026, when multiple provisions and clauses were removed, added, or affected by the Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO) located at <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide> and the Defense Federal Acquisition Regulation Supplement (DFARS) RFO Class Deviations located at https://www.acq.osd.mil/dpap/dars/dfars_far_overhaul_class_deviations.html. Offerors are advised the contract writing system has not been fully updated as of the date of the release of the solicitation and any resulting awards the clauses will be refreshed to unilaterally modify the contract to fully incorporate all relevant RFO and DFARS RFO Class Deviations. All other terms and conditions will remain unchanged. The offeror's signature at Box 30 provides concurrence to this change.

Item	Supplies / Services	Estimated Quantity	Unit	Unit Price	Amount
0001	Deployment Services Deployment Services for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
0002	Deployment Services Deployment services for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
0003	Deployment Services Deployment services for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
0004	Scalable Support Scalable support for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
0005	Scalable Support Scalable support for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
0006	Scalable Support Scalable support for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
0007	Other Direct Cost (ODC) for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
	Other Direct Cost (ODC) for the JOMIS PMO in accordance with the PWS.				

0008	Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
0009	Other Direct Cost (ODC) for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
0010	Travel This CLIN is for reimbursement of travel cost for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
0011	Travel This CLIN is for reimbursement of travel cost for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
0012	Travel This CLIN is for reimbursement of travel cost for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
0013	Contract Data Requirement List (CDRL) The Contractor shall furnish data for the DHMSM PMO in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		
0014	Contract Data Requirement List (CDRL) The Contractor shall furnish data for the JOMIS PMO in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		
0015	Contract Data Requirement List (CDRL) The Contractor shall furnish data for other components not currently defined in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 1001	Option Period 1 Deployment Services Option Period 1 Deployment services for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
	Option Period 1 Deployment Services Option Period 1 Deployment services for the JOMIS				

Option Line Item 1002	PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 1003	Option Period 1 Deployment Services Option Period 1 Deployment services for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 1004	Option Period 1 Scalable Support Option Period 1 Scalable support for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 1005	Option Period 1 Scalable Support Option Period 1 Scalable support for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 1006	Option Period 1 Scalable Support Option Period 1 Scalable support for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 1007	Option Period 1 Other Direct Cost (ODC) Option Period 1 Other Direct Cost (ODC) for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 1008	Option Period 1 Other Direct Cost (ODC) Option Period 1 Other Direct Cost (ODC) for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 1009	Option Period 1 Other Direct Cost (ODC) Option Period 1 Other Direct Cost (ODC) for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 1010	Option Period 1 Travel Option Period 1 This CLIN is for reimbursement of travel cost for the DHMSM PMO in accordance with the PWS.	1	Each		

	Product Service Code: DF01 Pricing Arrangement: Cost No Fee				
Option Line Item 1011	Option Period 1 Travel Option Period 1 This CLIN is for reimbursement of travel cost for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 1012	Option Period 1 Travel Option Period 1 This CLIN is for reimbursement of travel cost for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 1013	Option Period 1 Contract Data Requirement List (CDRL) Option Period 1 The Contractor shall furnish data for the DHMSM PMO in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 1014	Option Period 1 Contract Data Requirement List (CDRL) Option Period 1 The Contractor shall furnish data for the JOMIS PMO in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 1015	Option Period 1 Contract Data Requirement List (CDRL) Option Period 1 The Contractor shall furnish data for other components not currently defined in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 2001	Option Period 2 Deployment Services Option Period 2 Deployment services for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 2002	Option Period 2 Deployment Services Option Period 2 Deployment services for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 2003	Option Period 2 Deployment Services Option Period 2 Deployment services for other components not currently defined in accordance with the PWS.	12	Months		

	Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price				
Option Line Item 2004	Option Period 2 Scalable Support Option Period 2 Scalable support for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 2005	Option Period 2 Scalable Support Option Period 2 Scalable support for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 2006	Option Period 2 Scalable Support Option Period 2 Scalable support for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 2007	Option Period 2 Other Direct Cost (ODC) Option Period 2 Other Direct Cost (ODC) for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 2008	Option Period 2 Other Direct Cost (ODC) Option Period 2 Other Direct Cost (ODC) for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 2009	Option Period 2 Other Direct Cost (ODC) Option Period 2 Other Direct Cost (ODC) for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 2010	Option Period 2 Travel Option Period 2 This CLIN is for reimbursement of travel cost for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 2011	Option Period 2 Travel Option Period 2 This CLIN is for reimbursement of travel cost for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		

Option Line Item 2012	Option Period 2 Travel Option Period 2 This CLIN is for reimbursement of travel cost for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 2013	Option Period 2 Contract Data Requirement List (CDRL) Option Period 2 The Contractor shall furnish data for the DHMSM PMO in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 2014	Option Period 2 Contract Data Requirement List (CDRL) Option Period 2 The Contractor shall furnish data for the JOMIS PMO in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 2015	Option Period 2 Contract Data Requirement List (CDRL) Option Period 2 The Contractor shall furnish data for other components not currently defined in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 3001	Option Period 3 Deployment Services Option Period 3 Deployment services for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 3002	Option Period 3 Deployment Services Option Period 3 Deployment services for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 3003	Option Period 3 Deployment Services Option Period 3 Deployment services for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 3004	Option Period 3 Scalable Support Option Period 3 Scalable support for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
	Option Period 3 Scalable Support Option Period 3				

Option Line Item 3005	Scalable support for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 3006	Option Period 3 Scalable Support Option Period 3 Scalable support for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 3007	Option Period 3 Other Direct Cost (ODC) Option Period 3 Other Direct Cost (ODC) for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 3008	Option Period 3 Other Direct Cost (ODC) Option Period 3 Other Direct Cost (ODC) for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 3009	Option Period 3 Other Direct Cost (ODC) Option Period 3 Other Direct Cost (ODC) for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 3010	Option Period 3 Travel Option Period 3 This CLIN is for reimbursement of travel cost for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 3011	Option Period 3 Travel Option Period 3 This CLIN is for reimbursement of travel cost for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 3012	Option Period 3 Travel Option Period 3 This CLIN is for reimbursement of travel cost for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
	Option Period 3 Contract Data Requirement List (CDRL) Option Period 3				

Option Line Item 3013	The Contractor shall furnish data for the DHMSM PMO in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 3014	Option Period 3 Contract Data Requirement List (CDRL) Option Period 3 The Contractor shall furnish data for the JOMIS PMO in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 3015	Option Period 3 Contract Data Requirement List (CDRL) Option Period 3 The Contractor shall furnish data for other components not currently defined in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		
Option Line Item 4001	Option Period 4 Deployment Services Option Period 4 Deployment services for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 4002	Option Period 4 Deployment Services Option Period 4 Deployment services for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 4003	Option Period 4 Deployment Services Option Period 4 Deployment services for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 4004	Option Period 4 Scalable Support Option Period 4 Scalable support for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 4005	Option Period 4 Scalable Support Option Period 4 Scalable support for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	12	Months		
Option Line Item 4006	Option Period 4 Scalable Support Option Period 4 Scalable support for other components not currently defined in accordance with the PWS.	12	Months		

	Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price				
Option Line Item 4007	Option Period 4 Other Direct Cost (ODC) Option Period 4 Other Direct Cost (ODC) for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 4008	Option Period 4 Other Direct Cost (ODC) Option Period 4 Other Direct Cost (ODC) for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 4009	Option Period 4 Other Direct Cost (ODC) Option Period 4 Other Direct Cost (ODC) for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 4010	Option Period 4 Travel Option Period 4 This CLIN is for reimbursement of travel cost for the DHMSM PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 4011	Option Period 4 Travel Option Period 4 This CLIN is for reimbursement of travel cost for the JOMIS PMO in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 4012	Option Period 4 Travel Option Period 4 This CLIN is for reimbursement of travel cost for other components not currently defined in accordance with the PWS. Product Service Code: DF01 Pricing Arrangement: Cost No Fee	1	Each		
Option Line Item 4013	Option Period 4 Contract Data Requirement List (CDRL) Option Period 4 The Contractor shall furnish data for the DHMSM PMO in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		
	Option Period 4 Contract Data Requirement List (CDRL) Option Period 4 The Contractor shall furnish data for the JOMIS PMO in accordance	1	Lot		

Option Line Item 4014	with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price				
Option Line Item 4015	Option Period 4 Contract Data Requirement List (CDRL) Option Period 4 The Contractor shall furnish data for other components not currently defined in accordance with the PWS and DD 1423. Product Service Code: DF01 Pricing Arrangement: Firm Fixed Price	1	Lot		

Description/Specifications/Statement of Work

Requirements

This contract covers deployment services and materials necessary to execute deployment services including site preparation, deployment, training, change management, and post-installation support.

Packaging and Marking

Inspection and Acceptance

Deliveries or Performance

Contract Administration Data

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.201-7000	Contracting Officer's Representative.	Dec 1991		
252.204-7002	Payment for Contract Line or Subline Items Not Separately Priced.	Apr 2020		
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports.	Dec 2018		

DFARS Clauses Incorporated by Full Text

252.232-7006 Wide Area WorkFlow Payment Instructions. (Jan 2023)

WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) *Definitions.* As used in this clause-

"Department of Defense Activity Address Code (DoDAAC)" is a six position code that uniquely identifies a unit, activity, or organization.

"Document type" means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

"Local processing office (LPO)" is the office responsible for payment certification when payment certification is done external to the entitlement system.

"Payment request" and "receiving report" are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) *Electronic invoicing.* The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) *WAWF access.* To access WAWF, the Contractor shall-

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) *WAWF training.* The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) *WAWF methods of document submission.* Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) *WAWF payment instructions.* The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) *Document type.* The Contractor shall submit payment requests using the following document type(s):

- (i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.
- (ii) For fixed price line items-

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Invoice 2in1

- (iii) For customary progress payments based on costs incurred, submit a progress payment request.
- (iv) For performance based payments, submit a performance based payment request.
- (v) For commercial financing, submit a commercial financing request.

(2)) Fast Pay requests are only permitted when Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO) 52.232-90 is included in the contract.

(3) *Document routing.* The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	TBD
Issue By DoDAAC	HT0038
Admin DoDAAC	TBD
Inspect By DoDAAC	TBD
Ship To Code	TBD
Ship From Code	TBD
Mark For Code	TBD
Service Approver (DoDAAC)	TBD
Service Acceptor (DoDAAC)	TBD
Accept at Other DoDAAC	TBD
LPO DoDAAC	TBD
DCAA Auditor DoDAAC	TBD
Other DoDAAC(s)	TBD

(4) *Payment request.* The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) *Receiving report.* The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) *WAWF point of contact.*

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact.

TBD at the Task Order level.

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

Special Contract Requirements

SOFA Contract Clause

INVITED CONTRACTOR OR TECHNICAL REPRESENTATIVE STATUS UNDER U.S. - REPUBLIC OF KOREA (ROK)

Invited Contractor (IC) and Technical Representative (TR) status shall be governed by the U.S.- ROK Status of Forces Agreement (SOFA) as implemented by United States Forces Korea (USFK) Reg 700-19, which can be found under the "publications" tab on the US Forces Korea homepage <http://www.usfk.mil>

(a) Definitions. As used in this clause--

"U.S. - ROK Status of Forces Agreement" (SOFA) means the Mutual Defense Treaty between the Republic of Korea and the U.S. of America, Regarding Facilities and Areas and the Status of U.S. Armed Forces in the Republic of Korea, as amended.

"Combatant Commander" means the commander of a unified or specified combatant command established in accordance with 10 U.S.C. 161. In Korea, the Combatant Commander is the Commander, United States Pacific Command.

"United States Forces Korea" (USFK) means the subordinate unified command through which US forces would be sent to the Combined Forces Command fighting components.

"Commander, United States Forces Korea" (COMUSK) means the commander of all U.S. forces present in Korea. In the Republic of Korea, COMUSK also serves as Commander, Combined Forces Command (CDR CFC) and Commander, United Nations Command (CDR UNC).

"USFK, Assistant Chief of Staff, Acquisition Management" (USFK/FKAQ) means the principal staff office to USFK for all acquisition matters and administrator of the U.S.-ROK SOFA as applied to US and Third Country contractors under the Invited Contractor (IC) and Technical Representative (TR) Program (USFK Reg 700-19).

"Responsible Officer (RO)" means a senior DOD employee (such as a military E5 and above or civilian GS-7 and above), appointed by the USFK Sponsoring Agency (SA), who is directly responsible for determining and administering appropriate logistics support for IC/TRs during contract performance in the ROK.

(b) IC or TR status under the SOFA is subject to the written approval of USFK, Assistant Chief of Staff, Acquisition Management (FKAQ), Unit #15289, APO AP 96205-5289.

(c) The contracting officer will coordinate with HQ USFK/FKAQ, IAW Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO) 25.8, and USFK Reg 700-19. FKAQ will determine the appropriate contractor status under the SOFA and notify the contracting officer of that determination.

(d) Subject to the above determination, the contractor, including its employees and lawful dependents, may be accorded such privileges and exemptions under conditions and limitations as specified in the SOFA and USFK Reg 700-19. These privileges and exemptions may be furnished during the performance period of the contract, subject to their availability and continued SOFA status. Logistics support privileges are provided on an as-available basis to properly authorized individuals. Some logistics support may be issued as Government Furnished Property or transferred on a reimbursable basis.

(e) The contractor warrants and shall ensure that collectively, and individually, its officials and employees performing under this contract will not perform any contract, service, or other business activity in the ROK, except under U.S. Government contracts and that performance is IAW the SOFA.

(f) The contractor's direct employment of any Korean-National labor for performance of this contract shall be governed by ROK labor law and USFK regulation(s) pertaining to the direct employment and personnel administration of Korean National personnel.

(g) The authorities of the ROK have the right to exercise jurisdiction over invited contractors and technical representatives, including contractor officials, employees and their dependents, for offenses committed in the ROK and punishable by the laws of the ROK. In recognition of the role of such persons in the defense of the ROK, they will be subject to the provisions of Article XXII, SOFA, related Agreed Minutes and Understandings. In those cases in which the authorities of the ROK decide not to exercise jurisdiction, they shall notify the U.S. military authorities as soon as possible. Upon such notification, the military authorities will have the right to exercise jurisdiction as is conferred by the laws of the U.S.

(h) Invited contractors and technical representatives agree to cooperate fully with the USFK Sponsoring Agency (SA) and Responsible Officer (RO) on all matters pertaining to logistics support and theater training requirements. Contractors will provide the assigned SA prompt and accurate reports of changes in employee status as required by USFK Reg 700-19.

(i) Theater Specific Training. Training Requirements for IC/TR personnel shall be conducted in accordance with USFK Reg 350-2 Theater Specific Required Training for all Arriving Personnel and Units Assigned to, Rotating to, or in Temporary Duty Status to USFK. IC/TR personnel shall comply with requirements of USFK Reg 350-2.

(j) Except for contractor air crews flying Air Mobility Command missions, all U.S. contractors performing work on USAF classified contracts will report to the nearest Security Forces Information Security Section for the geographical area where the contract is to be performed to receive information concerning local security requirements.

(k) Invited Contractor and Technical Representative status may be withdrawn by USFK/FKAQ upon:

- (1) Completion or termination of the contract.
- (2) Determination that the contractor or its employees are engaged in business activities in the ROK other than those pertaining to U.S. armed forces.
- (3) Determination that the contractor or its employees are engaged in practices in contravention to Korean law or USFK regulations.

(l) It is agreed that the withdrawal of invited contractor or technical representative status, or the withdrawal of, or failure to provide any of the privileges associated therewith by the U.S. and USFK, shall not constitute grounds for excusable delay by the contractor in the performance of the contract and will not justify or excuse the contractor defaulting in the performance of this contract. Furthermore, it is agreed that withdrawal of SOFA status for reasons outlined in USFK Reg 700-19, Section II, paragraph 6 shall not serve as a basis for the contractor filing any claims against the U.S. or USFK. Under no circumstance shall the withdrawal of SOFA Status or privileges be considered or construed as a breach of contract by the U.S. Government.

(m) Support.

- (1) Unless the terms and conditions of this contract place the responsibility with another party, the COMUSK will develop a security plan to provide protection, through military means, of Contractor personnel engaged in the theater of operations when sufficient or legitimate civilian authority does not exist.

- (2)

(i) All Contractor personnel engaged in the theater of operations are authorized resuscitative care, stabilization, hospitalization at level III military treatment facilities, and assistance with patient movement in emergencies where loss of life, limb, or eyesight could occur. Hospitalization will be limited to stabilization and short-term medical treatment with an emphasis on return to duty or placement in the patient movement system.

(ii) When the Government provides medical or emergency dental treatment or transportation of Contractor personnel to a selected civilian facility, the Contractor shall ensure that the Government is reimbursed for any costs associated with such treatment or transportation.

(iii) Medical or dental care beyond this standard is not authorized unless specified elsewhere in this contract.

(3) Unless specified elsewhere in this contract, the Contractor is responsible for all other support required for its personnel engaged in the theater of operations under this contract.

(n) Compliance with laws and regulations. The Contractor shall comply with, and shall ensure that its personnel supporting U.S Armed Forces in the Republic of Korea as specified in paragraph (b)(1) of this clause are familiar with and comply with, all applicable--

(1) United States, host country, and third country national laws;

(2) Treaties and international agreements;

(3) United States regulations, directives, instructions, policies, and procedures; and

(4) Orders, directives, and instructions issued by the COMUSK relating to force protection, security, health, safety, or relations and interaction with local nationals. Included in this list are force protection advisories, health advisories, area (i.e. "off-limits"), prostitution and human trafficking and curfew restrictions.

(o) Vehicle or equipment licenses. IAW USFK Regulation 190-1, Contractor personnel shall possess the required licenses to operate all vehicles or equipment necessary to perform the contract in the theater of operations. All contractor employees/dependents must have either a Korean driver's license or a valid international driver's license to legally drive on Korean roads.

(p) Evacuation.

(1) If the COMUSK orders a non-mandatory or mandatory evacuation of some or all personnel, the Government will provide assistance, to the extent available, to United States and third country national contractor personnel.

(2) Non-combatant Evacuation Operations (NEO).

(i) The contractor shall designate a representative to provide contractor personnel and dependents information to the servicing NEO warden as required by direction of the Responsible Officer.

(ii) If contract period of performance in the Republic of Korea is greater than six months, non emergency essential contractor personnel and all IC/TR dependents shall participate in at least one USFK sponsored NEO exercise per year.

(q) Next of kin notification and personnel recovery.

(1) The Contractor shall be responsible for notification of the employee-designated next of kin in the event an employee dies, requires evacuation due to an injury, or is missing, captured, or abducted.

(2) In the case of missing, captured, or abducted contractor personnel, the Government will assist in personnel recovery actions in accordance with DOD Directive 2310.2, Personnel Recovery.

(3) IC/TR personnel shall accomplish Personnel Recovery/Survival, Evasion, Resistance and Escape (PR/SERE) training in accordance with USFK Reg 525-40, Personnel Recovery Procedures and USFK Reg 350-2 Theater Specific Required Training for all Arriving Personnel and Units Assigned to, Rotating to, or in Temporary Duty Status to USFK.

(r) Mortuary affairs. Mortuary affairs for contractor personnel who die while providing support in the theater of operations to U.S. Armed Forces will be handled in accordance with DOD Directive 1300.22, Mortuary Affairs Policy and Army Regulation 638-2, Care and Disposition of Remains and Disposition of Personal Effects.

(s) USFK Responsible Officer (RO). The USFK appointed RO will ensure all IC/TR personnel complete all applicable training as outlined in this clause.

(END)

ADDENDUM 1 - Organizational Conflict of Interest

This contract is likely to introduce biased ground rules, hinder objectivity, and create unequal access to information.

To mitigate potential conflicts of interest, the Contractor, by mutual agreement, will be ineligible to perform (as a contractor, subcontractor, or team member) on any future contracts or agreements with our agency partners or subordinate organizations for the duration of this contract and for twelve (12) months following its conclusion. This exclusion does not apply to follow-on actions that directly continue the effort under this contract.

For more information on Organizational Conflicts of Interest, please refer to RFO 9.5.

I. Definitions:

Unless otherwise specified in this provision, the terms used in this provision are defined in the RFO and DFARS RFO Class Deviation, as applicable.

Contractor - For the purposes of this addendum, the term "contractor" means the contractor, its subsidiaries and affiliates, subcontractors, vendors, consultants, joint ventures, contractor teaming arrangements, involving the contractor, and any entity with which the contractor may hereafter merge or affiliate and any other successor or assignee of the contractor.

II. Warranty Against Conflicts of Interest.

The Contractor warrants, by signing this solicitation or any subsequent contract, that it will not perform DHMS related work for similar projects under other government contracts, as described above. In the event of a breach of this warranty, the Government may, at its sole discretion:

- Terminate this contract for cause. The Contractor shall not be entitled to any reimbursement of costs incurred or payment of fees under this agreement. Additionally, the Contractor shall not be able to allocate or charge any such costs, directly or indirectly, to any other government contract.
- Pursue any other remedies available under law or regulation.

III. Non-Disclosure.

To ensure the protection of other contractors' proprietary information, the Contractor shall enter into a Mutual Non-Disclosure Agreement (NDA) [see DHA NDA Form 49]. with the Government, which is provided at Attachment 18. Ask your Contracting Officer for a copy of DHA NDA Form 49 if you do not have access to the latest version. This NDA will:

- Mirror the Level of Protection afforded by Government employees handling such information.
- Require Contractor Training. The Contractor must train their employees on proper handling of this confidential information.
- Require employees to sign acknowledging the sensitive nature of the information and the potential consequences of unauthorized use.
- Give Government Review and Access Control. The Government will determine whether a bona fide need exists for individual employees to access this information. Only authorized personnel will be granted access.
- Limit Dissemination. Contractor employees must be further trained to understand that unauthorized disclosure (to other employees or government personnel) violates their company NDAs.

IV. Associate Agreements.

If a contractor conditions access to their proprietary information, all entities may be required to execute non-disclosure, non-compete, or business associate agreements directly with other contractors prior to obtaining access to proprietary information, as required.

V. Notification/Mitigation.

If the Contractor identifies an actual or potential Organizational Conflict of Interest (OCI) that has not already been adequately disclosed and resolved (or waived in accordance with RFO 9.503), the Contractor shall make a prompt and full disclosure in writing to the Contracting Officer. This disclosure shall include a description of the OCI and the action(s) the Contractor has taken, or proposes to take, in order to resolve the conflict. The Contractor may also identify actions the Government may take to address or resolve the OCI. If an OCI mitigation plan is involved in the resolution of the OCI and the contract does not already include the clause at DHA.H.2 entitled "Mitigation of Organizational Conflicts of Interest," then the substance of this addendum shall be incorporated into the contract by addendum.

VI. Flow Down.

The Contractor shall include the substance of this addendum, including this paragraph (VII), in all subcontracts. The terms "Contractor" and "Contracting Officer" shall be appropriately modified to reflect the change in parties and to preserve the Government's rights. If the Contractor believes, based on the circumstances of a particular subcontract, that flow down is not in the Government's best interest, the Contractor shall notify and receive approval from the Contracting Officer to waive the flow down on a case-by-case-basis.

VII. Disclosure.

The Contractor is notified that future solicitations issued by Contracting Division - Defense Healthcare Management Systems will require disclosure of work performed under this contract as a matter of compliance. Further, the Contractor agrees that it will notify any potential Prime on future solicitations issued by Contracting Division - Defense Healthcare Management Systems, prior to executing any teaming or subcontracting arrangements established to respond to any such solicitation.

VIII. Termination of Restraint.

The restraints of this addendum expire twelve (12) months after performance under this contract ceases.

(END)

ADDENDUM 2 - Limited Disclosure of Contractor Confidential Business Information

Due to the size and complexity of DHMS, the Government has supplemented its staff with support contractors. For those contractors to fully engage in DHMS activities, the DHMS will be required to release some confidential business information to the support contractor. This addendum informs the contractors of these circumstances and requires commercially consistent safeguards and protections for all parties relative to the sharing of this information.

I. Definitions:

"Confidential Business Information," (Information) as used in this addendum, includes any financial, business, economic, or technical data, including software or its documentation, regardless of form or storage method (physical, electronic, graphical, photographic, written). Information qualifies as confidential if it meets all three conditions:

- The owner has taken reasonable steps to keep it secret, and
- It has independent economic value because it is not generally known or easily obtainable by the public, and
- It includes technical data as defined in DFARS RFO Class Deviation 252.227-7990 and computer software/documentation as defined in DFARS RFO Class Deviation 227.7101.

II. Limited Release of Information.

The government may share Information submitted by the contractor or its subcontractors with certain individuals employed by support contractors and their subcontractors involved in this agreement. This may include information typically considered confidential. By submitting a proposal or signing this agreement, the contractor and its subcontractors agree to this limited release, but only for the purposes outlined in Section IV of this addendum.

III. Permitted Sharing of Information.

Circumstances where the Government may release the contractor's or subcontractors' Information include the following:

- a. Agreement Administration Support:** With employees of other contractors and subcontractors who help the government manage and process information and documents related to agreements, such as file management and agreement closeout.
- b. Accounting Support:** With employees of other contractors and subcontractors who assist the government with accounting tasks, including access to Invoice/Voucher.
- c. Technical and Administrative Support:** With employees of other contractors and subcontractors who help the government with technical and administrative tasks, such as monitoring agreement progress and providing financial oversight.
- d. Project/Program Management Support:** With employees of other contractors and subcontractors who advise or provide technical assistance to support the government's management and oversight of its projects and programs.

IV. Protections for Contractor Information.

The government understands its obligation to protect the contractor and its subcontractors from potential harm caused by sharing Confidential Business Information. The government will only allow the limited information sharing described in sections IV(a), IV(b), IV(c), and IV(d) under the following conditions:

- a. Need-to-Know:** The Government determines that access is required by other contractors and their subcontractors to perform the tasks described in paragraphs (IV)(a), (IV)(b), (IV)(c), and (IV)(d);
- b. Restricted Access:** Access to Information is restricted to individuals with a bona fide need to possess;
- c. Non-Disclosure Agreements:** Contractors and subcontractors with access to the Information must agree, through their contracts or separate corporate non-disclosure agreements, to protect the information with the same level of care used by government employees. These agreements must require the contractors and subcontractors to:
 - i. Train their employees on how to properly handle the Information.
 - ii. Have employees sign company non-disclosure agreements acknowledging the sensitivity of the Information and the potential consequences of unauthorized use. The government must receive copies of these employee agreements.
- d. Limited Use:** Contractors and their subcontractors performing the tasks described in sections IV(a) through (d) have agreed under their agreement or a separate non-disclosure agreement to not use the Information for any purpose other than performing the tasks described in paragraphs IV(a) through (d);
- e. Technical Data Protection:** Contractors and subcontractors with access to technical data, computer software, or computer software documentation must have a Use and Non-Disclosure Agreement as specified in DFARS RFO Class Deviation 227.7103-7; and,
- f. Notification:** Before releasing Information to non-government personnel for the tasks described in sections IV(a) through (d), the government will provide the contractor with a list of the companies receiving access and a point of contact for those entities. The government may also provide copies of any Non-Disclosure Agreements upon request.
- g. Freedom of Information Act (FOIA)** This addendum does not affect the government's responsibilities under the Freedom of Information Act.
- h. Subcontractor Inclusion** The contractor agrees to include this addendum, and require its inclusion, in all subcontracts at any tier that involve the furnishing of Confidential Business Information.

(END)

ADDENDUM 3 - Pre-Award Identification and Assertion of Restrictions on Commercial Technical Data and Commercial Computer Software

I. Definitions:

Unless otherwise specified in this provision, the terms used in this provision are defined in the RFO and DFARS RFO Class Deviation, as applicable.

- a. Third-party** is any party other than the Government and the Contractor, such as subcontractors.
- b. Third-party License** is a license not executed directly between the Government and the Contractor.

II. Identification and Assertion of Restrictions.

The Offeror shall refrain from delivering to the Government any commercial technical data (TD), commercial computer software (CS), or commercial computer software documentation (CSD), including any from a third party, if it bears restrictive markings or is otherwise subject to restrictions on access, use, modification, reproduction, release, performance, display, or disclosure. However, if such data or software falls under these restrictions, it must be clearly identified in accordance with the following requirements:

a. Pre-Award Identification and Assertion.

The Offeror shall identify all technical data, commercial computer software, and commercial computer software documentation, including third-party that it proposes will be delivered or otherwise provided throughout the entire contract (including all Delivery/Task Orders, if issued, and Option CLINs, if exercised) with rights more restrictive than Unlimited Rights as follows:

- i. The Offeror shall identify and assert any restrictions for all commercial technical data, commercial computer software, and commercial computer software documentation using the format provided in the table located in section iv below.
- ii. An Offeror's failure to submit, complete, or sign the identification and assertions required by this provision with its offer may render the offer ineligible for award.
- iii. If the Offeror is awarded a contract, the assertions identified in this provision will be listed in an Attachment to that Contract.

b. Copies of Commercial Licenses.

The Offeror shall provide copies of all commercial license(s) to commercial technical data, commercial computer software, or commercial computer software documentation, including third party licenses, that the Offeror proposes to deliver under this contract. The Government will review the licenses to ensure that the license terms are consistent with the federal procurement law and meet the Government program's user needs as defined in the sub-paragraphs below. All such commercial licenses will be made part of an Attachment to the Contract at award. If the Offeror intends to deliver commercial technical data under the terms of DFARS RFO Class Deviation 252.227-7990, Technical Data-Commercial Products and Commercial Services instead of its own commercial license, the Offeror shall include DFARS RFO Class Deviation 252.227-7990 in the Pre-Award table found in the table located in section iv below.

- i. Typical licensing terms that are inconsistent with federal procurement law can include, but are not limited to:
 1. **Jurisdiction and venue** - must be Federal law and venue,
 2. **Indemnification of vendor and automatic renewals** - Anti-Deficiency Act violation,
 3. **Order of Precedence** - Contract will take precedence over license,
 4. **Dispute resolution** - disputes must be in accordance with Disputes clause in Contract,

5. **Injunctive relief** - no injunctive relief against the Government is available, per 28 USC (S)1498(b).

6. This list is not all-inclusive but is intended to convey the most common license terms that are problematic to the Government and that must be resolved prior to award.

ii. Regarding the Government program's user needs for technical data and computer software delivered under this contract, the Government will need the rights to use, modify, release, display, disclose and distribute commercial computer software and commercial technical data associated with interface deliverables and commercial technical data associated with training deliverables outside of the Government for DHMS Purposes, but only under conditions that prohibit any further distribution by the third party recipient for any purpose. "PEO DHMS Purposes" is defined in the clause IP License Agreement. When exercising such rights the Government intends to use the Non-Disclosure Agreement found at DFARS RFO Class Deviation 227.7103-7, Non-Disclosure Agreement, or utilize substantially similar language incorporated in the recipient's contract with the Government.

iii. If the Offeror intends to use and deliver to the Government third party commercial TECHNICAL DATA, COMMERCIAL COMPUTER SOFTWARE, or COMMERCIAL COMPUTER SOFTWARE DOCUMENTATION in the performance of the contract, the Offeror shall list such commercial TECHNICAL DATA, COMMERCIAL COMPUTER SOFTWARE, or COMMERCIAL COMPUTER SOFTWARE DOCUMENTATION in paragraph (f). The Offeror shall ensure the license addresses the Government criteria in paragraph (d) and its sub-paragraphs.

c. Use of Commercial Computer Software Without Delivery.

The Government treats Open Source Software (OSS) as a category of commercial computer software. If the Offeror proposes to deliver OSS while performing the Contract, the Contractor shall follow the same procedures prescribed in this provision for commercial computer software. Additionally, if the Offeror proposes to use, but not deliver, commercial computer software (including OSS), the Contractor must ensure that such use does not: (i) create, or purport to create, any Government distribution obligations with respect to the computer software deliverables, or (ii) grant, or purport to grant, to any third party any rights to or immunities under Government intellectual property or Government data rights to the Government computer software deliverables. Finally, if the Offeror proposed to use, but not deliver, commercial computer software that is not OSS, the Offeror shall state whether the Government will need such commercial computer software for the Government's DHMS Purposes.

d. Table Format for Identification and Assertion of Restrictions.

The Contractor shall identify all commercial TECHNICAL DATA, COMMERCIAL COMPUTER SOFTWARE, and COMMERCIAL COMPUTER SOFTWARE DOCUMENTATION as follows:

Identification of Commercial Technical Data/Computer Software (Including Open Source Software) Use and Modifications

Commercial Technical Data/ Computer Software Title, Version #, and License*	Technical Use/ Implementing Approach **	If OSS, Was OSS modified by Contractor? ***	Name of Contractor, including third parties, asserting restrictions****

Enter "none" when all data or software will be submitted without restrictions.

* For commercial technical data (other than computer software documentation) related to items, components, or processes developed at private expense, identify both the deliverable technical data (by CDRL, if applicable) and each such items, component, or process. For computer software or computer software documentation identify the computer software or computer software documentation (by CDRL, if applicable). The complete title and version number of the computer software shall be listed. If Open Source Software (OSS), the OSS license and version number shall be listed. If a version number is not available, the Contractor shall state no version number. If commercial technical data is being delivered under the terms of DFARS RFO Class Deviation 252.227-7990, then DFARS 252.227-7990 shall be listed. If the OSS was downloaded from a website, the website address shall also be provided. Enter none if all commercial technical data or commercial computer software will be submitted without restrictions.

** The functionality of the commercial computer software shall be described, as well as where it is being used within the larger computer software deliverable (if applicable).

*** If OSS is being used, the Offeror shall state whether it has modified the OSS.

**** Corporation, individual, or other person as appropriate.

(END)

ADDENDUM 4 - IP License Agreement

I. Definitions:

Unless otherwise specified in this addendum, the terms used in this addendum are defined in the RFO and DFARS RFO Class Deviation as applicable.

a. AGREEMENT, means this License AGREEMENT for DHMS IP, as embodied in this addendum, and all amendments/modifications and supplements thereto.

b. CONTRACT, means contract number [HT003826DXXX]*.

c. CS, means DHMS IP that is computer software.

d. IP, means intellectual property embodied in the form of Technical Data, Computer Software, trade secrets, copyrights, or patents. For purposes of this AGREEMENT, IP does not include knowhow or other unrecorded forms of proprietary knowledge.

e. PEO DHMS, means the Program Executive Office - Defense Healthcare Management Systems, its subordinate Programs and Projects, and its federal partners, including but not limited to the Federal Electronic Health Record Management (FEHRM) Office, the Department of Veterans Affairs, and the United States Coast Guard, and any other partners that are added during performance of this agreement.

f. PEO DHMS IP, means

- i. Noncommercial Technical Data and Computer Software that is listed in proposals for notifications submitted or issued under the CONTRACT, and incorporated in the resulting CONTRACT, with other than Government Purpose Rights (GPR);
- ii. Commercial Technical Data and Computer Software listed in proposals for notifications submitted or issued under the CONTRACT, and incorporated in the resulting CONTRACT.
- iii. Does not include
 - 1. any Technical Data and Computer Software that is not listed in the CONTRACT (which must be delivered with Unlimited Rights);
 - 2. commercial Computer Software not listed in the CONTRACT; or
 - 3. any Trademarks or Service Marks owned or controlled by CONTRACTOR.

g. PEO DHMS Purposes means purposes of:

- i. Documenting procedures and methodologies utilized within PEO DHMS,
- ii. Training required to implement new processes and transform culture, as well as to indoctrinate new employees and contractors to PEO DHMS standard practices.

h. SPECIFICALLY NEGOTIATED LICENSE RIGHTS, means the rights to:

- i. Access, use, modify, reproduce, release, perform, display, or disclose PEO DHMS IP within the GOVERNMENT without restriction; and,
- ii. Subject to the terms of this AGREEMENT, release, distribute or disclose PEO DHMS IP outside the GOVERNMENT and authorize persons to whom release, or disclosure has been made to use, modify, reproduce, release, perform, display, or disclose the software or documentation for PEO DHMS PURPOSES.

i. TECHNICAL DATA, means PEO DHMS IP that is technical data that includes Computer Software documentation.

II. Reference.

- a. DFARS RFO Class Deviation 252.227-7989, Rights in Technical Data--Other Than Commercial Products and Commercial Services, as applicable
- b. DFARS RFO Class Deviation 252.227-7990, Technical Data-Commercial Products and Commercial Services, as applicable
- c. DFARS RFO Class Deviation 252.227-7992 , Identification and Assertion of Use, Release, or Disclosure Restrictions
- d. DFARS RFO Class Deviation 252.227-7997, Validation of Asserted Restrictions

III. Grant of Rights.

- a. Subject to the terms and conditions of this AGREEMENT, CONTRACTOR grants SPECIFICALLY NEGOTIATED LICENSE RIGHTS in the PEO DHMS IP to the GOVERNMENT.
- b. CONTRACTOR shall not assert patent rights, trade secret protections, data rights, or any form of intellectual property protection, either against GOVERNMENT or against third parties, which would limit the GOVERNMENT's full exercise of its SPECIFICALLY NEGOTIATED LICENSE RIGHTS in the PEO DHMS IP.
- c. The GOVERNMENT shall have Unlimited Rights in all other Technical Data and Computer Software (other than the PEO DHMS IP as listed above) that have been delivered under the CONTRACT, unless data rights on such Technical Data and Computer Software has been previously asserted in provision a data rights assertions list that complies with DFARS RFO Class Deviation Clause 252.227-7992, Identification and Assertion of Use, Release, or Disclosure Restrictions.
- d. The GOVERNMENT shall have the rights to use, modify, reproduce, perform, display, release, or disclose in whole or in part, in any manner, and for any purpose whatsoever, and to have or authorize others to do so any commercial Technical Data or Computer Software (other than PEO DHMS IP) that is delivered under the CONTRACT, unless that commercial Technical Data/Computer Software is not PEO DHMS IP, and is listed in a task order (as modified if post-award assertions are accepted by the Government) with license terms that are consistent with federal procurement law.

IV. Title.

- a. The GOVERNMENT acknowledges that title to and ownership of all intellectual property rights in the PEO DHMS IP are and shall remain with CONTRACTOR and its licensors. The GOVERNMENT acquires only the rights to the PEO DHMS IP as defined herein and in accordance with this AGREEMENT and does not acquire any ownership rights or title in or to the PEO DHMS IP or that of CONTRACTOR's licensors. Accordingly, the GOVERNMENT shall:
 - i. not alter, publish, republish, perform, distribute, assign, sublicense, sell, adapt, lease, rent, reverse compile, reverse engineer, reverse assemble, transmit, display, decompile, translate, or use the PEO DHMS IP other than as expressly permitted by this AGREEMENT;
 - ii. take appropriate action by instruction, agreement, or otherwise, to ensure that the PEO DHMS IP are used solely in the manner permitted under this AGREEMENT;
 - iii. act promptly to prevent any breach hereof of the Grant of Rights by any of its employees, agents, or contractors; and,
 - iv. immediately notify CONTRACTOR of any material violation of this Grant of Rights in this AGREEMENT.

V. Marking Requirements.

a. CONTRACTOR shall mark all PEO DHMS IP delivered under the AGREEMENT as follows:

Special License Rights - The Government's rights to use, modify, reproduce, release, perform, display, or disclose this technical data/computer software are

restricted by Contract No. HT003826DXXXX*. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings.

b. CONTRACTOR may also place copyright notices on such Technical Data/Computer Software in the following format: "(c) YYYY, CONTRACTOR." The GOVERNMENT will not remove any copyright notices from the PEO DHMS IP, provided the copyright notice is in the format prescribed in this section. However, the CONTRACTOR may not add any additional language to the copyright notice (such as "All Rights Reserved", for example) that could cause confusion to future end users as to the scope of SPECIFICALLY NEGOTIATED LICENSE RIGHTS in the PEO DHMS IP in any copyright notice placed on PEO DHMS IP delivered under the CONTRACT with SPECIFICALLY NEGOTIATED LICENSE RIGHTS. The GOVERNMENT shall have the rights to remove such language without notice to CONTRACTOR, and at CONTRACTOR's expense.

VI. Disputes.

a. Marking Disputes.

- i. Any disputes regarding CONTRACTOR's or any third party's markings of PEO DHMS IP under this AGREEMENT, other than as agreed to in Section V, shall be addressed in accordance with the clause DFARS RFO Class Deviation 252.227-7997 ("Validation of Asserted Restrictions"), as applicable.
- ii. If unjustified or nonconforming third-party markings are found in PEO DHMS IP, CONTRACTOR agrees (at its cost) to:
 1. obtain written permission from the third party to allow the GOVERNMENT to remove or ignore the marking (provided the GOVERNMENT uses the applicable PEO DHMS IP in accordance with this AGREEMENT); or,
 2. modify the PEO DHMS IP by replacing it with other PEO DHMS IP that is at least functionally equivalent to the PEO DHMS IP at issue, and that is not marked with third party markings. In cases where the PEO DHMS IP is modified and/or replaced, the GOVERNMENT shall be afforded a reasonable opportunity to transition to the modified/replacement PEO DHMS IP before discontinuing use of the PEO DHMS IP containing the third-party markings.
- iii. Other Disputes Not Related to Markings.
All other disputes arising under this AGREEMENT shall be governed by the Disputes clause in the CONTRACT.

VII. Representations, Warranties, and Indemnification.

a. CONTRACTOR represents and warrants with respect to the PEO DHMS IP that it has the corporate power to extend the rights in this AGREEMENT, and that it has not made and will not make any commitments to others that are inconsistent with or in derogation of such rights.

b. CONTRACTOR represents that as of the date of the AGREEMENT, the PEO DHMS IP that is CS is free of reasonably detectable computer viruses, self-help code and unauthorized code. "Self-help code" means any back door, time bomb, drop dead device or other software routine designed to disable a computer program automatically with the passage of time or under the positive control of anyone other than GOVERNMENT. "Unauthorized code" means any virus, trojan horse, worm or other software routines or hardware designed to permit unauthorized access, to disable, erase or otherwise harm software, hardware, or data or to perform any other such actions.

c. CONTRACTOR agrees to:

- i. defend the GOVERNMENT and its officers, employees, and authorized contractors against any claim by a third-party claimant alleging infringement of any United States patent, copyright, or trade secret arising out of GOVERNMENT's use of PEO DHMS IP consistent with the license grant hereunder (each, a "third-party claim"); and
- ii. pay all expenses, damages, judgments and costs (including any reasonable attorney fees, collectively, the "losses"), that a court finally awards against GOVERNMENT or its authorized agents or that are included in a negotiated settlement approved by CONTRACTOR, provided, that, GOVERNMENT promptly notifies CONTRACTOR in writing of the alleged claim; cooperates with CONTRACTOR in the defense of the third-party claim, at CONTRACTOR's expense; and allows CONTRACTOR to control the defense and any related settlement negotiations for the third-party claim. CONTRACTOR's duties of defense and indemnification are limited to infringements that are due to CONTRACTOR's actions or that CONTRACTOR knew or should have known about as of the award date of the CONTRACT.

d. CONTRACTOR has no obligation to defend or indemnify GOVERNMENT against any claim arising from or related to:

- i. PEO DHMS IP that has been altered by the Government or another contractor after delivery by the CONTRACTOR; and
- ii. use of the PEO DHMS IP in combination with other hardware or software when the claim is based on the combination.

e. If a third-party claim is made or appears likely to be made, GOVERNMENT agrees to permit CONTRACTOR to

- i. obtain rights to allow the GOVERNMENT to continue to use the PEO DHMS IP pertaining to the third-party claim,
- ii. modify it, or
- iii. replace it with other PEO DHMS IP that is at least functionally equivalent to the PEO DHMS IP at issue. In cases where the PEO DHMS IP is modified or replaced, the GOVERNMENT shall be afforded a reasonable opportunity to transition to the modified/replacement PEO DHMS IP before discontinuing use of the PEO DHMS IP pertaining to the third-party claim. After transitioning to the replacement PEO DHMS IP, the GOVERNMENT shall return the discontinued PEO DHMS IP to CONTRACTOR upon its written request to GOVERNMENT. CONTRACTOR and the GOVERNMENT will then promptly negotiate a fair refund to be paid to the GOVERNMENT.

f. The GOVERNMENT represents that it shall require recipients to execute the non-disclosure agreement specified at DFARS RFO Class Deviation 227.7103-7, use and Non-Disclosure Agreement (NDA), or that the recipient, if a contractor, has DFARS RFO Class Deviation 252.227-7994 Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends incorporated into its contract, before disclosing any PEO DHMS IP to a recipient outside of GOVERNMENT. A copy of the executed NDA shall be provided to CONTRACTOR. The NDA shall name the CONTRACTOR as a third-party beneficiary, to provide the CONTRACTOR an opportunity to enforce the NDA, if needed.

VIII. Delivery.

Ordering and Delivery Requirement.

The GOVERNMENT shall make all reasonable efforts to specify what PEO DHMS IP is required to be delivered at the award of each modification. However,

because of the complexity of the procurement, the GOVERNMENT cannot be certain that it has ordered all PEO DHMS IP that is needed for PEO DHMS Purposes. Therefore, the parties agree that execution of the CONTRACT constitutes a GOVERNMENT ordering of PEO DHMS IP and a request for delivery of PEO DHMS IP by the Government, but only for purposes of satisfying the FAR/DFARS formalities so that the SNLR in the PEO DHMS IP vest in the GOVERNMENT. The actual delivery requirements, procedures (access, transfer, etc.) and timetables shall be in accordance with the CONTRACT.

IX. General.

a. Integration and Order of Precedence.

This AGREEMENT is part of the CONTRACT, and together they shall be the entire agreement between the parties in relation to the PEO DHMS IP, to the exclusion of all antecedent or present representations, undertakings, agreements, or warranties, express or implied. In case of conflicts between the AGREEMENT and another part of the CONTRACT, the CONTRACT Order of Precedence clause shall govern whether the AGREEMENT or the CONTRACT shall take precedence.

b. Failures and Omissions.

A failure or omission by either party to enforce any remedy for any breach of any term or condition of this AGREEMENT shall not be construed as a waiver of such term or conditions.

c. Assignment, Sublicensing and Transfer.

This AGREEMENT shall not be assigned, sublicensed nor transferred by CONTRACTOR without prior written agreement of GOVERNMENT. The CONTRACTOR shall flow down the requirements of this agreement to all subcontractors.

d. Articles, Sections and Paragraphs.

The division of this AGREEMENT into articles, sections, and/or paragraphs and the insertion of paragraph headings are for convenience of reference only and shall not affect the construction or interpretation of the terms of this AGREEMENT.

e. Amendments and Modifications.

No amendments to or modifications of this AGREEMENT shall be effective unless reduced to writing and executed by the Parties hereto.

f. No Endorsement.

THIS AGREEMENT DOES NOT IN ANY MANNER CONSTITUTE AN ENDORSEMENT BY GOVERNMENT OF ANY RESULTS, RESULTING DESIGNS, HARDWARE, SOFTWARE OR ANY OTHER APPLICATIONS RESULTING FROM THE USE OF PEO DHMS IP UNDER THIS AGREEMENT. THIS AGREEMENT DOES NOT OBLIGATE THE GOVERNMENT IN ANY WAY, SHAPE OR FORM TO AWARD FUTURE PROCUREMENTS TO CONTRACTOR.

g. Choice of Law.

This AGREEMENT is subject solely to United States Federal law for all purposes, including, but not limited to, jurisdiction and venue, determining the validity of this AGREEMENT, the meaning of its provisions, and the rights, obligations, and remedies of the parties.

h. CONTRACTOR Contractual Obligations.

Nothing in this AGREEMENT excuses or relieves CONTRACTOR from its performance of any contractual requirements with or contractual obligation to GOVERNMENT that is beyond the scope of this AGREEMENT.

i. Technical Data/Computer Software Classification.

j. GOVERNMENT and CONTRACTOR agree that PEO DHMS IP associated with training as defined in section I is necessary for training on PEO DHMS, and as such is classified as Operations, Maintenance, Installation and Training IP.

(END)

ADDENDUM 5 - Software Licensing and Software Maintenance

I. Definitions:

Unless otherwise specified in this addendum, the terms used in this addendum are defined in the RFO and DFARS RFO Class Deviation, as applicable.

a. Authorized end-users - Government and non-Government personnel authorized by the Government to use a system, including partner personnel from other Government Agencies, or private sector partners.

b. Cloud Computing - As defined in DFARS RFO Class Deviation 252.239-7010, means a model for enabling ubiquitous, convenient, on-demand network access to a shared pool of configurable computing resources (e.g., networks, servers, storage, applications, and services) that can be rapidly provisioned and released with minimal management effort or service provider interaction. This includes other commercial terms, such as on-demand self-service, broad network access, resource pooling, rapid elasticity, and measured service. It also includes commercial offerings for software-as-a-service, infrastructure-as-a-service, and platform-as-a-service.

c. Enterprise - All authorized end-users; facilities; platforms; and all infrastructure (including hardware, underlying frameworks for providing Cloud Computing Services) required to operate an IT system in accordance with the contract.

d. Enterprise Software - At a minimum, any software and database management systems (DBMSs) developed by the performer at its expense, including that provided on an "as-a-service" or subscription basis. Also includes any other software the contractor proposes to deliver on an enterprise basis prior to delivery.

e. Non-Enterprise Software - Software not covered under the definition of "Enterprise Software," such as third-party commercial off-the-shelf software.

f. Software Maintenance - Includes all releases of the software such as major releases, minor releases, maintenance releases, patches, cybersecurity, and software assurance updates required by this contract.

g. Third-Party Content - Non-organization specific data, which requires Enterprise Software or Non-Enterprise Software for delivery under the agreement, but which is not owned by the Enterprise Software or Non-Enterprise Software vendor. Third-Party Content can include, but is not limited to, data or subscriptions to databases such as technology research databases, virtual or computer-based training, market research databases, business research databases, etc.

II. Enterprise Software Licenses.

The Enterprise Software was previously licensed on a perpetual, enterprise basis under the Agreement [N0003915D0044]. Consequently, the Government's actual enterprise will have continuous access to the software or software-as-a-service without any additional billing or costs. This licensing covers the entire enterprise, regardless of its future size.

For database management systems software falling within the Enterprise Software definition, the License Agreement may incorporate true-up terms. These terms account for any discrepancy between the licensed user count and the actual user count, subject to the following conditions:

- a. The Prime contractor agrees to cover any additional costs resulting from a true-up, at no extra expense to the Government, throughout the duration of this contract. The Prime contractor will also report these costs to the Government during each true-up for planning purposes.
- b. The user count tracking mechanism must be automated, impose no additional requirements on the Government, comply with cybersecurity and privacy standards outlined in the agreement, and be covered by the same License Agreement as the database management systems software (or by an agreement previously reviewed and approved by the Government before award). Additionally, the license agreement for this tracking mechanism must be transferable to the Government in accordance with paragraph f of this addendum.
- c. Before transferring the License Agreement (as outlined in paragraph f), the Prime Contractor commits to performing a true-up and amending the License Agreement at no extra cost to the Government. This amendment reflects the actual user count if it exceeds the licensed user count.
- d. The Prime Contractor submits a written agreement, which becomes part of an Attachment to the Contract upon award. This agreement aligns with conditions a-c if the license agreement includes true-up terms.

III. Non-Enterprise Software Licenses.

Software not covered under the definition of "Enterprise Software." Non-Enterprise Software is not required to be licensed in accordance with paragraph II of this addendum. However, all Non-Enterprise Software must be licensed in sufficient quantities to provide licensing for those Authorized End-Users within the Enterprise, as those terms are defined in section I. Definitions, that need to use such Non-Enterprise Software, regardless of their respective location or employment status.

IV. Term of License.

All enterprise licenses acquired under the contract will be perpetual licenses regardless of the expiration or termination of this contract or any lapses in maintenance.

V. Transferability.

All licenses will be transferable to the Government at no additional cost upon request of the Government with sixty (60) days prior notice. Unless otherwise specified by the Government, the contractor will transfer all licenses to the Government sixty (60) days prior to final expiration of this contract. Unless otherwise agreed to in writing by the Contracting Officer, the transferred license agreements shall include the same terms as those in the license agreements that have been reviewed by the Government pre-award and incorporated as an attachment to the contract at award. Any other license terms must be asserted in accordance with the post-award procedures in Addendum 4 or paragraph I of Addendum 2 for Cloud Computing Services agreements.

VI. Software Maintenance and Version Support.

Software maintenance will cover the actual enterprise during the term of the Contract.

VII. External Capabilities.

The Government may, during performance of this contract, purchase external commercial off-the-shelf software or software-as-a-service either from the contractor or a third-party vendor to enable a desired future capability. The contractor will provide all integration and engineering services necessary to integrate the external capability into the DHMS solution if required.

VIII. Existing Enterprise Software Agreements.

The contractor is authorized to order from existing Department of Defense Enterprise Software Initiative (DoD ESI), Enterprise Software Agreements (ESAs), Department of the Navy (DON) Enterprise Software Licensing (ESL) Agreements, or Federal Strategic Sourcing Initiative SmartBuy ESAs for the purpose of procuring / providing software licenses and software maintenance in the performance of this agreement. A list of existing DON ESL agreements will be provided by the Government post award. Prior to procuring any software in the performance of this agreement, the performer shall evaluate the pricing and license terms amongst existing DoD ESI, ESAs, and DON ESLs as compared to commercial sources/agreements, following the procedures set forth in DFARS 208.74, and procure the lowest-priced software licenses and software maintenance that are consistent with the terms and conditions of this agreement.

IX. Third-Party Content.

Third-Party Content must be provided in adequate quantities and with licenses that meet the Government's needs as outlined in section II, Enterprise Software Licenses, of this addendum. According to this section, Third-Party Content does not need to be licensed on a perpetual basis. It can be included as part of an Enterprise Software or Non-Enterprise Software license agreement, rather than being licensed separately. However, if the Third-Party Content is licensed separately, the license agreement must also comply with section V, Transferability, of this addendum.

X. Cloud Computing Services.

Cloud Computing Services must be licensed with terms and functionality that meet the Government's needs as specified in sections III and V of this

addendum. The contractor may submit new or revised Cloud Computing Services agreements after the award, subject to approval by the Contracting Officer. These post-award agreements will be reviewed for compliance with Federal law, contract requirements, this addendum, DFARS RFO Class Deviation 252.239-7010, and any other applicable contract clauses. The contractor must provide all Cloud Computing Services agreements intended for use in performing this contract. All such agreements will be attached to this contract.

(END)

ADDENDUM 6 - Late Invoice/Voucher Submission

- I. The contractor must submit Invoice/Voucher within 30 days upon completing the service.
- II. Despite any other payment provisions in this contract, the government will process Invoice/Voucher payments according to the terms outlined in 52.232-25 (Prompt Payment).
- III. Failure to submit Invoice/Voucher within the specified timeframe may negatively affect the Contractor Performance Assessment Reporting System (CPARS) ratings.
- IV. If the contractor is unable to submit Invoice/Voucher on time, they must promptly notify the Contracting Officer's Representative (COR) in writing, explaining the reason for the delay and indicating the expected submission date.
- V. Invoice/Voucher not received as per the contract terms may be denied payment or subject to a claim.
- VI. The contractor should maintain a record of all outstanding Invoice/Voucher for quarterly reconciliation with the COR.

(END)

Contract Clauses

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-3	Gratuities.	Apr 1984		
52.203-6	Restrictions on Subcontractor Sales to the Government.	Jun 2020		
52.203-6	Restrictions on Subcontractor Sales to the Government. (Alternate I)	Jun 2020	Alternate I	Nov 2021
52.203-13	Contractor Code of Business Ethics and Conduct.	Nov 2021		
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements.	Jan 2017		
52.204-9	Personal Identity Verification of Contractor Personnel.	Jan 2011		
52.204-13	System for Award Management-Maintenance. (Deviation)	Feb 2026		
52.204-91	Contractor Identification. (Deviation)	Feb 2026		
52.208-90	Government Supply Sources. (Deviation)	Feb 2026		
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, Proposed for Debarment, or Voluntarily Excluded. (Deviation)	Feb 2026		
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters. (Deviation)	Feb 2026		
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations. (Deviation)	Feb 2026		
52.212-4	Terms and Conditions-Commercial Products and Commercial Services. (Deviation)	Feb 2026		
52.219-9	Small Business Subcontracting Plan. (Alternate I)	Feb 2026	Alternate I	Feb 2026
52.222-19	Child Labor-Cooperation with Authorities and Remedies. (Deviation)	Feb 2026		
52.222-50	Combating Trafficking in Persons. (Deviation)	Feb 2026		
52.223-5	Pollution Prevention and Right-to-Know Information.	May 2024		
52.224-1	Privacy Act Notification.	Apr 1984		
52.224-2	Privacy Act.	Apr 1984		
52.224-3	Privacy Training.	Jan 2017		
52.224-3	Privacy Training. (Alternate I)	Jan 2017	Alternate I	Jan 2017
52.226-8	Encouraging Contractor Policies to Ban Text Messaging While Driving.	May 2024		
52.228-3	Workers' Compensation Insurance (Defense Base Act).	Jul 2014		
52.229-12	Tax on Certain Foreign Procurements.	Feb 2021		
52.232-25	Prompt Payment.	Jan 2017		
52.232-33	Payment by Electronic Funds Transfer-System for Award Management.	Oct 2018		
52.232-36	Payment by Third Party. (Deviation)	Feb 2026		
52.233-3	Protest after Award. (Deviation)	Feb 2026		
52.233-4	Applicable Law for Breach of Contract Claim. (Deviation)	Feb 2026		
52.240-91	Security Prohibitions and Exclusions. (Deviation)	Feb 2026		
52.240-93	Basic Safeguarding of Covered Contractor Information Systems. (Deviation)	Feb 2026		
52.244-6	Subcontracts for Commercial Products and Commercial Services. (Deviation)	Feb 2026		
52.245-1	Government Property. (Alternate I)	Sep 2021	Alternate I	Apr 2012
52.249-14	Excusable Delays.	Apr 1984		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7000	Requirements Relating to Compensation of Former DoD Officials.	Sep 2011		
252.203-7002	Requirement to Inform Employees of Whistleblower Rights.	Dec 2022		
252.203-7003	Agency Office of the Inspector General.	Aug 2019		
252.204-7004	Antiterrorism Awareness Training for Contractors.	Jan 2023		
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information.	Jan 2023		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting.	May 2024		
252.204-7012	Safeguarding Covered Defense Information and Cyber Incident Reporting. (DEVIATION 2024-O0013 REVISION 1)	May 2024	Deviation 2024-O0013	May 2024
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.	Jan 2023		
252.204-7022	Expediting Contract Closeout.	May 2021		
252.204-7023	Reporting Requirements for Contracted Services. (Alternate I)	Jul 2021	Alternate I	Jul 2021
252.205-7000	Provision of Information to Cooperative Agreement Holders.	Oct 2024		
252.209-7004	Subcontracting with Firms that are Owned or Controlled by the Government of a Country that is a State Sponsor of Terrorism.	May 2019		
252.211-7008	Use of Government-Assigned Serial Numbers.	Sep 2010		
252.216-7010	Postaward Debriefings for Task Orders and Delivery Orders.	Oct 2025		
252.219-7996	Small Business Subcontracting Plan (DoD Contracts). (DEVIATION 2026-O0037)	Feb 2026	Deviation 2026-O0037	Feb 2026
252.222-7002	Compliance with Local Labor Laws (Overseas).	Jun 1997		
252.223-7008	Prohibition of Hexavalent Chromium.	Jan 2023		
252.225-7001	Buy American and Balance of Payments Program.	Feb 2024		
252.225-7005	Identification of Expenditures in the United States .	Jun 2005		
252.225-7012	Preference for Certain Domestic Commodities.	Apr 2022		
252.225-7021	Trade Agreements.	Feb 2024		
252.225-7036	Buy American-Free Trade Agreements--Balance of Payments Program.	Feb 2024		
252.225-7040	Contractor Personnel Supporting U.S. Armed Forces Deployed Outside the United States.	Aug 2025		
252.225-7041	Correspondence in English.	Jun 1997		
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	May 2024		
252.225-7056	Prohibition Regarding Business Operations with the Maduro Regime.	Jan 2023		
252.225-7060	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region.	Jun 2023		
252.225-7976	Contractor Personnel Performing in Japan (DEVIATION 2018-O0019)	Aug 2018	Deviation 2018-O0019	Aug 2018

252.226-7001	Utilization of Indian Organizations, Indian-Owned Economic Enterprises, and Native Hawaiian Small Business Concerns.	Jan 2023		
252.227-7990	Technical Data--Commercial Products and Commercial Services. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7991	Rights in Bid or Proposal Information. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7994	Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7995	Deferred Ordering of Technical Data or Computer Software. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7996	Technical Data--Withholding of Payment. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.227-7997	Validation of Asserted Restrictions. (DEVIATION 2026-O0036)	Feb 2026	Deviation 2026-O0036	Feb 2026
252.232-7010	Levies on Contract Payments.	Dec 2006		
252.233-7001	Choice of Law (Overseas).	Jun 1997		
252.235-7004	Protection of Human Subjects.	Jul 2009		
252.237-7010	Prohibition on Interrogation of Detainees by Contractor Personnel.	Jan 2023		
252.239-7010	Cloud Computing Services.	Jan 2023		
252.240-7997	NIST SP 800-171 DoD Assessment Requirements. (DEVIATION 2026-O0025)	Feb 2026	Deviation 2026-O0025	Feb 2026
252.243-7002	Requests for Equitable Adjustment.	Dec 2022		
252.244-7998	Contractor Purchasing System Administration. (DEVIATION 2026-O0015)	Feb 2026	Deviation 2026-O0015	Feb 2026
252.244-7999	Subcontracts for Commercial Products or Commercial Services. (DEVIATION 2026-O0015)	Feb 2026	Deviation 2026-O0015	Jan 2026
252.245-7003	Contractor Property Management System Administration	Jan 2025		
252.245-7005	Management and Reporting of Government Property.	Jan 2024		
252.247-7023	Transportation of Supplies by Sea.	Oct 2024		
252.247-7028	Application for U.S. Government Shipping Documentation/ Instructions.	Jun 2012		

FAR Clauses Incorporated by Full Text

52.216-18 Ordering. (Aug 2020)

Ordering (Aug 2020)

(a) Any supplies and services to be furnished under this contract shall be ordered by issuance of delivery orders or task orders by the individuals or activities designated in the Schedule. Such orders may be issued from **date of award through five years thereafter**.

(b) All delivery orders or task orders are subject to the terms and conditions of this contract. In the event of conflict between a delivery order or task order and this contract, the contract shall control.

(c) A delivery order or task order is considered "issued" when-

(1) If sent by mail (includes transmittal by U.S. mail or private delivery service), the Government deposits the order in the mail;

(2) If sent by fax, the Government transmits the order to the Contractor's fax number; or

(3) If sent electronically, the Government either-

(i) Posts a copy of the delivery order or task order to a Government document access system, and notice is sent to the Contractor; or

(ii) Distributes the delivery order or task order via email to the Contractor's email address.

(d) Orders may be issued by methods other than those enumerated in this clause only if authorized in the contract.

(End of clause)

52.216-19 Order Limitations. (Oct 1995)

Order Limitations (Oct 1995)

(a) *Minimum order*. When the Government requires supplies or services covered by this contract in an amount of less than **\$10,000**, the Government is not obligated to purchase, nor is the Contractor obligated to furnish, those supplies or services under the contract.

(b) *Maximum order*. The Contractor is not obligated to honor-

(1) Any order for a single item in excess of **\$50M**;

(2) Any order for a combination of items in excess of **\$120M**; or

(3) A series of orders from the same ordering office within **3** days that together call for quantities exceeding the limitation in paragraph (b)(1) or (2) of this section.

(c) If this is a requirements contract (*i.e.*, includes the Requirements clause at subsection 52.216-21 of the Federal Acquisition Regulation (FAR)), the Government is not required to order a part of any one requirement from the Contractor if that requirement exceeds the maximum-order limitations in paragraph (b) of this section.

(d) Notwithstanding paragraphs (b) and (c) of this section, the Contractor shall honor any order exceeding the maximum order limitations in paragraph (b), unless that order (or orders) is returned to the ordering office within **3** days after issuance, with written notice stating the Contractor's intent not to ship the item (or items) called for and the reasons. Upon receiving this notice, the Government may acquire the supplies or services from another source.

ADDENDUM 1 - Pursuant to Revolutionary Federal Acquisition Regulation (FAR) Overhaul (RFO) 16.504-1(b), the Government may issue a task order to satisfy the minimum guarantee in amount equal or above paragraph (a).

(End of clause)

52.216-22 Indefinite Quantity. (Deviation)

(Feb 2026)

Indefinite Quantity (Feb 2026) (Deviation)

(a) This is an indefinite-quantity contract for the supplies or services specified, and effective for the period stated, in the Schedule. The quantities of supplies and services specified in the Schedule are estimates only and are not purchased by this contract.

(b) Delivery or performance shall be made only as authorized by orders issued in accordance with the Ordering clause. The Contractor shall furnish to the Government, when and if ordered, the supplies or services specified in the Schedule up to and including the quantity designated in the Schedule as the "maximum." The Government shall order at least the quantity of supplies or services designated in the Schedule as the "minimum."

(c) Except for any limitations on quantities in the Order Limitations clause or in the Schedule, there is no limit on the number of orders that may be issued. The Government may issue orders requiring delivery to multiple destinations or performance at multiple locations.

(d) Any order issued during the ordering period of this contract and not completed within that period shall be completed by the Contractor within the time specified in the order, which may include order options to be exercised after the ordering period of this contract but before the end of the period of performance of the order. The contract shall govern the Contractor's and Government's rights and obligations with respect to that order, including options exercised, to the same extent as if the order were completed during the contract's ordering period; provided, that the Contractor shall not be required to make any deliveries under this contract after **TBD**.

(End of clause)

52.216-32 Task-Order and Delivery-Order Ombudsman.

(Sep 2019)

Task-Order and Delivery-Order Ombudsman (Sept 2019)

(a) In accordance with 41 U.S.C. 4106(g), the Agency has designated the following task-order and delivery-order Ombudsman for this contract. The Ombudsman must review complaints from the Contractor concerning all task-order and delivery-order actions for this contract and ensure the Contractor is afforded a fair opportunity for consideration in the award of orders, consistent with the procedures in the contract.

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(b) Consulting an ombudsman does not alter or postpone the timeline for any other process (e.g., protests).

(c) Before consulting with the Ombudsman, the Contractor is encouraged to first address complaints with the Contracting Officer for resolution. When requested by the Contractor, the Ombudsman may keep the identity of the concerned party or entity confidential, unless prohibited by law or agency procedure.

(End of clause)

52.217-8 Option to Extend Services.

(Nov 1999)

Option to Extend Services (Nov 1999)

The Government may require continued performance of any services within the limits and at the rates specified in the contract. These rates may be adjusted only as a result of revisions to prevailing labor rates provided by the Secretary of Labor. The option provision may be exercised more than once, but the total extension of performance hereunder shall not exceed 6 months. The Contracting Officer may exercise the option by written notice to the Contractor within **30 days**.

ADDENDUM 1 - For the purposes of this contract, the option to extend services will be applied at the individual task order level when required. This extension will be evaluated and negotiated prior to issuing a task order to which the clause applies, and will not be priced or utilized to extend the ordering periods of the IDIQ contract.

(End of clause)

52.217-9 Option to Extend the Term of the Contract.

(Mar 2000)

Option to Extend the Term of the Contract (Mar 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within **30 days**; provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least **30 days** before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed **5 years and 6 months**.

ADDENDUM 1 - For the purposes of this IDIQ contract, the words "term" and "duration" are agreed to mean the ordering periods delineated in the schedule. When the final ordering period expires, performance under any extant task orders will continue in accordance with the order-specific terms until complete, notwithstanding paragraph (c) of this clause.

(End of clause)

DFARS Clauses Incorporated by Full Text

252.204-7021 Contractor Compliance with the Cybersecurity Maturity Model Certification Level Requirements. (Nov 2025)

CONTRACTOR COMPLIANCE WITH THE CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this clause-

"Controlled unclassified information" means information the Government creates or possesses, or information an entity creates or possesses for or on behalf of the Government, that a law, regulation, or Governmentwide policy requires or permits an agency to handle using safeguarding or dissemination controls (32 CFR 2002.4(h)).

"Current" means-

(1) With regard to Conditional Cybersecurity Maturity Model Certification (CMMC) Status-

(i) Not older than 180 days for Conditional Level 2 (Self) assessments and Conditional Level 2 (certified third-party assessment organization (C3PAO)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.16 and 170.17); and

(B) A corresponding affirmation of continuous compliance by an affirming official (see 32 CFR 170.4); and

(ii) Not older than 180 days for Conditional Level 3 (Defense Industrial Base Cybersecurity Assessment Center (DIBCAC)) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Conditional CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance by an affirming official;

(2) With regard to Final CMMC Status-

(i) Not older than 1 year for Final Level 1 (Self), with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.15); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official;

(ii) Not older than 3 years for Final Level 2 (Self) assessments and Final Level 2 (C3PAO) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.16 and 170.17); and

and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(iii) Not older than 3 years for Final Level 3 (DIBCAC) assessments, with-

(A) No changes in compliance with the requirements at 32 CFR part 170 since the Final CMMC Status date (see 32 CFR 170.18); and

(B) A corresponding affirmation of continuous compliance, not older than 1 year, by an affirming official; and

(3) With regard to affirmation of continuous compliance (32 CFR 170.22), not older than 1 year with no changes in compliance with the requirements at 32 CFR part 170.

"Cybersecurity Maturity Model Certification (CMMC) status" means the result of meeting or exceeding the minimum required score for the corresponding assessment. The potential statuses are as follows:

(1) Final Level 1 (Self).

(2) Conditional Level 2 (Self).

(3) Final Level 2 (Self).

(4) Conditional Level 2 (C3PAO).

(5) Final Level 2 (C3PAO).

(6) Conditional Level 3 (DIBCAC).

(7) Final Level 3 (DIBCAC).

"Cybersecurity Maturity Model Certification unique identifier (CMMC UID)" means 10 alpha-numeric characters assigned to each CMMC assessment and reflected in the Supplier Performance Risk System (SPRS) for each contractor information system.

"Federal contract information (FCI)" means information, not intended for public release, that is provided by or generated for the Government under a contract to develop or deliver a product or service to the Government. It does not include information provided by the Government to the public, such as on public websites, or simple transactional information, such as information necessary to process payments.

"Plan of action and milestones" means a document that identifies tasks to be accomplished. It details resources required to accomplish the elements of the plan, any milestones in meeting the tasks, and scheduled completion dates for the milestones, as defined in National Institute of Standards and Technology Special Publication 800-115 (32 CFR 170.21).

(b) *Framework.* The Cybersecurity Maturity Model Certification (CMMC) is a framework for assessing a contractor's compliance with applicable information security protections (see 32 CFR part 170).

(c) *Duplication.* The CMMC assessments will not duplicate efforts from any other comparable DoD assessment, except for rare circumstances when a reassessment may be necessary, for example, when there are indications of issues with cybersecurity and/or compliance with CMMC requirements.

(d) *Requirements.* The Contractor shall-

(1)(i) Have and maintain for the duration of the contract a current CMMC status at the following CMMC level, or higher: *CMMC Level 2 (C3PAO)* for all information systems used in performance of the contract, task order, or delivery order that process, store, or transmit FCI or CUI; and

(ii) Consult 32 CFR 170.23 related to the flowdown of the CMMC requirements, and flow down the correct CMMC level to subcontracts and other contractual instruments;

(2) Only process, store, or transmit FCI or CUI on contractor information systems that have a CMMC status at the CMMC level required in paragraph (d) (1) of this clause, or higher;

(3) Complete on an annual basis, and maintain as current, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required in paragraph (d)(1) of this clause in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil/>) for each CMMC UID applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract;

(4) Ensure all subcontractors and suppliers complete prior to subcontract award, and maintain on an annual basis, an affirmation, by the affirming official (see 32 CFR 170.4), of continuous compliance with the requirements associated with the CMMC level required for the subcontract or other contractual instrument for each of the subcontractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the subcontract; and

(5) If the Contractor has a CMMC Status of Conditional, successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(e) *Reporting.* The Contractor shall-

(1) Submit to the Contracting Officer-

(i) The CMMC UID(s) issued by SPRS for contractor information systems that will process, store, or transmit FCI or CUI during performance of the contract; and

(ii) Any changes in the CMMC UIDs generated in SPRS throughout the life of the contract, task order, or delivery order, if applicable;

(2) Enter into SPRS the results of a current self-assessment for each CMMC UID, not covered by a C3PAO assessment or DIBCAC assessment, applicable to each of the contractor information systems that process, store, or transmit FCI or CUI and that are used in performance of the contract; and

(3) Complete in SPRS on an annual basis and maintain as current an affirmation of continuous compliance by the affirming official (see 32 CFR 170.4) for each self-assessment, C3PAO assessment, or DIBCAC assessment required under the contract in SPRS.

(f) *Subcontracts.* The Contractor shall-

(1) Insert the substance of this clause, including this paragraph (f) and excluding paragraph (e)(1), in subcontracts and other contractual instruments, including those for the acquisition of commercial products or commercial services, excluding commercially available off-the-shelf items, if the subcontract or other contractual instrument will contain a requirement to process, store, or transmit FCI or CUI; and

(2) Prior to awarding a subcontract or other contractual instrument, ensure that the subcontractor has a current CMMC certificate or current CMMC status at the CMMC level that is appropriate for the information that is being flowed down to the subcontractor based on the requirements at 32 CFR 170.23.

(End of clause)

252.211-7003 Item Unique Identification and Valuation.

(Jan 2023)

ITEM UNIQUE IDENTIFICATION AND VALUATION (JAN 2023)

(a) *Definitions.* As used in this clause-

"Automatic identification device" means a device, such as a reader or interrogator, used to retrieve data encoded on machine-readable media.

"Concatenated unique item identifier" means-

(1) For items that are serialized within the enterprise identifier, the linking together of the unique identifier data elements in order of the issuing agency code, enterprise identifier, and unique serial number within the enterprise identifier; or

(2) For items that are serialized within the original part, lot, or batch number, the linking together of the unique identifier data elements in order of the issuing agency code; enterprise identifier; original part, lot, or batch number; and serial number within the original part, lot, or batch number.

"Data matrix" means a two-dimensional matrix symbology, which is made up of square or, in some cases, round modules arranged within a perimeter finder pattern and uses the Error Checking and Correction 200 (ECC200) specification found within International Standards Organization (ISO)/International Electrotechnical Commission (IEC) 16022.

"Data qualifier" means a specified character (or string of characters) that immediately precedes a data field that defines the general category or intended use of the data that follows.

"DoD recognized unique identification equivalent" means a unique identification method that is in commercial use and has been recognized by DoD. All DoD recognized unique identification equivalents are listed at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

"DoD item unique identification" means a system of marking items delivered to DoD with unique item identifiers that have machine-readable data elements to distinguish an item from all other like and unlike items. For items that are serialized within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier and a unique serial number. For items that are serialized within the part, lot, or batch number within the enterprise identifier, the unique item identifier shall include the data elements of the enterprise identifier; the original part, lot, or batch number; and the serial number.

"Enterprise" means the entity (e.g., a manufacturer or vendor) responsible for assigning unique item identifiers to items.

"Enterprise identifier" means a code that is uniquely assigned to an enterprise by an issuing agency.

"Government's unit acquisition cost" means-

- (1) For fixed-price type line, subtitle, or exhibit line items, the unit price identified in the contract at the time of delivery;
- (2) For cost-type or undefinitized line, subtitle, or exhibit line items, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery; and
- (3) For items produced under a time-and-materials contract, the Contractor's estimated fully burdened unit cost to the Government at the time of delivery.

"Issuing agency" means an organization responsible for assigning a globally unique identifier to an enterprise, as indicated in the Register of Issuing Agency Codes for ISO/IEC 15459, located at http://www.aimglobal.org/?Reg_Authority15459.

"Issuing agency code" means a code that designates the registration (or controlling) authority for the enterprise identifier.

"Item" means a single hardware article or a single unit formed by a grouping of subassemblies, components, or constituent parts.

"Lot or batch number" means an identifying number assigned by the enterprise to a designated group of items, usually referred to as either a lot or a batch, all of which were manufactured under identical conditions.

"Machine-readable" means an automatic identification technology media, such as bar codes, contact memory buttons, radio frequency identification, or optical memory cards.

"Original part number" means a combination of numbers or letters assigned by the enterprise at item creation to a class of items with the same form, fit, function, and interface.

"Parent item" means the item assembly, intermediate component, or subassembly that has an embedded item with a unique item identifier or DoD recognized unique identification equivalent.

"Serial number within the enterprise identifier" means a combination of numbers, letters, or symbols assigned by the enterprise to an item that provides for the differentiation of that item from any other like and unlike item and is never used again within the enterprise.

"Serial number within the part, lot, or batch number" means a combination of numbers or letters assigned by the enterprise to an item that provides for the differentiation of that item from any other like item within a part, lot, or batch number assignment.

"Serialization within the enterprise identifier" means each item produced is assigned a serial number that is unique among all the tangible items produced by the enterprise and is never used again. The enterprise is responsible for ensuring unique serialization within the enterprise identifier.

"Serialization within the part, lot, or batch number" means each item of a particular part, lot, or batch number is assigned a unique serial number within that part, lot, or batch number assignment. The enterprise is responsible for ensuring unique serialization within the part, lot, or batch number within the enterprise identifier.

"Type designation" means a combination of letters and numerals assigned by the Government to a major end item, assembly or subassembly, as appropriate, to provide a convenient means of differentiating between items having the same basic name and to indicate modifications and changes thereto.

"Unique item identifier" means a set of data elements marked on items that is globally unique and unambiguous. The term includes a concatenated unique item identifier or a DoD recognized unique identification equivalent.

"Unique item identifier type" means a designator to indicate which method of uniquely identifying a part has been used. The current list of accepted unique item identifier types is maintained at <https://www.acq.osd.mil/asda/dpc/ce/ds/unique-id.html>.

(b) The Contractor shall deliver all items under a contract line, subtitle, or exhibit line item.

(c) *Unique item identifier.*

(1) The Contractor shall provide a unique item identifier for the following:

(i) Delivered items for which the Government's unit acquisition cost is \$5,000 or more, except for the following line items:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
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TBD at the Task Order Level

- (ii) Items for which the Government's unit acquisition cost is less than \$5,000 that are identified in the Schedule or the following table:

Contract Line, Subline, or

Exhibit Line Item Number	Item Description
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TBD at the Task Order Level

(iii) Subassemblies, components, and parts embedded within delivered items, items with warranty requirements, DoD serially managed reparable and DoD serially managed nonreparables as specified in Attachment Number ____.

(iv) Any item of special tooling or special test equipment as defined in FAR 2.101 that have been designated for preservation and storage for a Major Defense Acquisition Program as specified in Attachment Number ____.

- (v) Any item not included in (i), (ii), (iii), or (iv) for which the contractor creates and marks a unique item identifier for traceability.

(2) The unique item identifier assignment and its component data element combination shall not be duplicated on any other item marked or registered in the DoD Item Unique Identification Registry by the contractor.

(3) The unique item identifier component data elements shall be marked on an item using two dimensional data matrix symbology that complies with ISO/IEC International Standard 16022, Information technology - International symbology specification - Data matrix; ECC200 data matrix specification.

- (4) *Data syntax and semantics of unique item identifiers.* The Contractor shall ensure that-

(i) The data elements (except issuing agency code) of the unique item identifier are encoded within the data matrix symbol that is marked on the item using one of the following three types of data qualifiers, as determined by the Contractor:

(A) Application Identifiers (AIs) (Format Indicator 05 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(B) Data Identifiers (DIs) (Format Indicator 06 of ISO/IEC International Standard 15434), in accordance with ISO/IEC International Standard 15418, Information Technology - EAN/UCC Application Identifiers and Fact Data Identifiers and Maintenance and ANSI MH 10.8.2 Data Identifier and Application Identifier Standard.

(C) Text Element Identifiers (TEIs) (Format Indicator 12 of ISO/IEC International Standard 15434), in accordance with the Air Transport Association Common Support Data Dictionary; and

(ii) The encoded data elements of the unique item identifier conform to the transfer structure, syntax, and coding of messages and data formats specified for Format Indicators 05, 06, and 12 in ISO/IEC International Standard 15434, Information Technology - Transfer Syntax for High Capacity Automatic Data Capture Media.

- (5) *Unique item identifier.*

- (i) The Contractor shall-

(A) Determine whether to-

(1) Serialize within the enterprise identifier;

(2) Serialize within the part, lot, or batch number; or

(3) Use a DoD recognized unique identification equivalent (e.g. Vehicle Identification Number); and

(B) Place the data elements of the unique item identifier (enterprise identifier; serial number; DoD recognized unique identification equivalent; and for serialization within the part, lot, or batch number only: original part, lot, or batch number) on items requiring marking by paragraph (c)(1) of this clause, based on the criteria provided in MIL-STD-130, Identification Marking of U.S. Military Property, latest version;

(C) Label shipments, storage containers and packages that contain uniquely identified items in accordance with the requirements of MIL-STD-129, Military Marking for Shipment and Storage, latest version; and

(D) Verify that the marks on items and labels on shipments, storage containers, and packages are machine readable and conform to the applicable standards. The contractor shall use an automatic identification technology device for this verification that has been programmed to the requirements of Appendix A, MIL-STD-130, latest version.

- (ii) The issuing agency code-

(A) Shall not be placed on the item; and

(B) Shall be derived from the data qualifier for the enterprise identifier.

(d) For each item that requires item unique identification under paragraph (c)(1)(i), (ii), or (iv) of this clause or when item unique identification is provided under paragraph (c)(1)(v), in addition to the information provided as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the Contractor shall report at the time of delivery, as part of the Material Inspection and Receiving Report, the following information:

- (1) Unique item identifier.

- (2) Unique item identifier type.

- (3) Issuing agency code (if concatenated unique item identifier is used).

- (4) Enterprise identifier (if concatenated unique item identifier is used).
- (5) Original part number (if there is serialization within the original part number).
- (6) Lot or batch number (if there is serialization within the lot or batch number).
- (7) Current part number (optional and only if not the same as the original part number).
- (8) Current part number effective date (optional and only if current part number is used).
- (9) Serial number (if concatenated unique item identifier is used).
- (10) Government's unit acquisition cost.
- (11) Unit of measure.
- (12) Type designation of the item as specified in the contract schedule, if any.
- (13) Whether the item is an item of Special Tooling or Special Test Equipment.
- (14) Whether the item is covered by a warranty.

(e) For embedded subassemblies, components, and parts that require DoD item unique identification under paragraph (c)(1)(iii) of this clause or when item unique identification is provided under paragraph (c)(1)(v), the Contractor shall report as part of the Material Inspection and Receiving Report specified elsewhere in this contract, the following information:

- (1) Unique item identifier of the parent item under paragraph (c)(1) of this clause that contains the embedded subassembly, component, or part.
- (2) Unique item identifier of the embedded subassembly, component, or part.
- (3) Unique item identifier type.**
- (4) Issuing agency code (if concatenated unique item identifier is used).**
- (5) Enterprise identifier (if concatenated unique item identifier is used).**
- (6) Original part number (if there is serialization within the original part number).**
- (7) Lot or batch number (if there is serialization within the lot or batch number).**
- (8) Current part number (optional and only if not the same as the original part number).**
- (9) Current part number effective date (optional and only if current part number is used).**
- (10) Serial number (if concatenated unique item identifier is used).**
- (11) Description.

** Once per item.

(f) The Contractor shall submit the information required by paragraphs (d) and (e) of this clause as follows:

(1) End items shall be reported using the receiving report capability in Wide Area WorkFlow (WAWF) in accordance with the clause at 252.232-7003. If WAWF is not required by this contract, and the contractor is not using WAWF, follow the procedures at <http://dodprocurementtoolbox.com/site/uidregistry/>.

(2) Embedded items shall be reported by one of the following methods-

- (i) Use of the embedded items capability in WAWF;
- (ii) Direct data submission to the IUID Registry following the procedures and formats at <http://dodprocurementtoolbox.com/site/uidregistry/>; or
- (iii) Via WAWF as a deliverable attachment for exhibit line item number (fill in) _____, Unique Item Identifier Report for Embedded Items, Contract Data Requirements List, DD Form 1423.

(g) *Subcontracts.* If the Contractor acquires by subcontract, any item(s) for which item unique identification is required in accordance with paragraph (c)(1) of this clause, the Contractor shall include this clause, including this paragraph (g), in the applicable subcontract(s), including subcontracts for commercial products or commercial services.

(End of clause)

252.217-7027 Contract Definition.

(May 2023)

CONTRACT DEFINITIZATION (MAY 2023)

The use of this clause will be determined at the Task Order level, when applicable.

(a) A _____ [insert specific type of contract action] is contemplated. The Contractor agrees to begin promptly negotiating with the Contracting Officer the terms of a definitive contract that will include-

- (1) All clauses required by the Federal Acquisition Regulation (FAR) on the date of execution of the undefinitized contract action;
- (2) All clauses required by law on the date of execution of the definitive contract action; and
- (3) Any other mutually agreeable clauses, terms, and conditions.

(b) The Contractor agrees to submit a _____ *[insert type of proposal; e.g., fixed-price or cost-and-fee]* proposal and certified cost or pricing data supporting its proposal. Notwithstanding FAR 52.216-26, Payments of Allowable Costs Before Definitization, failure to meet the qualifying proposal date in the contract definitization schedule could result in the Contracting Officer withholding an amount up to 5 percent of all subsequent requests for financing until the Contracting Officer determines that a proposal is qualifying.

(c) The schedule for definitizing this contract action is as follows *[insert target date for definitization of the contract action and dates for submission of proposal, beginning of negotiations, and, if appropriate, submission of the make-or-buy and subcontracting plans and certified cost or pricing data]*:

(d) If agreement on a definitive contract action to supersede this undefinitized contract action is not reached by the target date in paragraph (c) of this clause, or within any extension of it granted by the Contracting Officer, the Contracting Officer may, with the approval of the head of the contracting activity, determine a reasonable price or fee in accordance with FAR subpart 15.4 and part 31, subject to Contractor appeal as provided in the Disputes clause. In any event, the Contractor shall proceed with completion of the contract, subject only to the Limitation of Government Liability clause.

(1) After the Contracting Officer's determination of price or fee, the contract shall be governed by-

- (i) All clauses required by the FAR on the date of execution of this undefinitized contract action for either fixed-price or cost-reimbursement contracts, as determined by the Contracting Officer under this paragraph (e);
- (ii) All clauses required by law as of the date of the Contracting Officer's determination; and
- (iii) Any other clauses, terms, and conditions mutually agreed upon.

(2) To the extent consistent with paragraph (d)(1) of this clause, all clauses, terms, and conditions included in this undefinitized contract action shall continue in effect, except those that by their nature apply only to an undefinitized contract action.

(e) The definitive contract resulting from this undefinitized contract action will include a negotiated _____ *[insert "cost/price ceiling" or "firm-fixed price"]* in no event to exceed _____ *[insert the not-to-exceed amount]*.

(End of clause)

252.225-7963 Antiterrorism/Force Protection for Defense Contractors Outside the United States. (Feb 2026) Deviation 2026-O0041 (Feb 2026)
(DEVIATION 2026-O0041)

ANTITERRORISM/FORCE PROTECTION POLICY FOR DEFENSE CONTRACTORS OUTSIDE THE UNITED STATES(DEVIAION 2026-O0041) (FEB 2026)

The use of this clause will be determined at the Task Order level, when applicable.

(a) *Definition.* "United States," as used in this clause, means, the 50 States, the District of Columbia, and outlying areas.

(b) Except as provided in paragraph (c) of this clause, the Contractor and its subcontractors, if performing or traveling outside the United States under this contract, shall--

(1) Affiliate with the Overseas Security Advisory Council, if the Contractor or subcontractor is a U.S. entity;

(2) Ensure that Contractor and subcontractor personnel who are U.S. nationals and are in-country on a non-transitory basis, register with the U.S. Embassy, and that Contractor and subcontractor personnel who are third country nationals comply with any security related requirements of the Embassy of their nationality;

(3) Provide, to Contractor and subcontractor personnel, antiterrorism/force protection awareness information commensurate with that which the Department of Defense (DoD) provides to its military and civilian personnel and their families, to the extent such information can be made available prior to travel outside the United States; and

(4) Obtain and comply with the most current antiterrorism/force protection guidance for Contractor and subcontractor personnel.

(c) The requirements of this clause do not apply to any subcontractor that is--

- (1) A foreign government;
- (2) A representative of a foreign government; or
- (3) A foreign corporation wholly owned by a foreign government.

(d) Information and guidance pertaining to DoD antiterrorism/force protection can be obtained from the **DHA Security Office**.

(End of clause)

Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services. (Feb 2026) Deviation 2026-O0036 (Feb 2026)
(DEVIATION 2026-O0036)

RIGHTS IN TECHNICAL DATA, COMPUTER SOFTWARE, AND COMPUTER SOFTWARE DOCUMENTATION--OTHER THAN COMMERCIAL PRODUCTS OR COMMERCIAL SERVICES (DEVIATION 2026-O0036) (FEB 2026)

(a) *Definitions.* As used in this clause--

"Commercial computer software" means software developed or regularly used for nongovernmental purposes which--

- (1) Has been sold, leased, or licensed to the public;
- (2) Has been offered for sale, lease, or license to the public;
- (3) Has not been offered, sold, leased, or licensed to the public but will be available for commercial sale, lease, or license in time to satisfy the delivery requirements of this contract; or
- (4) Satisfies a criterion expressed in paragraph (1), (2), or (3) of this definition and would require only minor modification to meet the requirements of this contract.

"Computer database" means a collection of data recorded in a form capable of being processed by a computer. The term does not include computer software.

"Computer program" means a set of instructions, rules, or routines recorded in a form that is capable of causing a computer to perform a specific operation or series of operations.

"Computer software" means computer programs, source code, source code listings, object code listings, design details, algorithms, processes, flow charts, formulae and related material that would enable the software to be reproduced, recreated, or recompiled. Computer software does not include computer databases or computer software documentation.

"Computer software documentation" means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

"Covered Government support contractor" means a contractor (other than a litigation support contractor covered by 252.204-7014) under a contract, the primary purpose of which is to furnish independent and impartial advice or technical assistance directly to the Government in support of the Government's management and oversight of a program or effort, rather than to directly furnish an end item or service to accomplish a program or effort, provided that the contractor--

- (1) Is not affiliated with the prime contractor or a first-tier subcontractor on the program or effort, or with any direct competitor of such prime contractor or any such first-tier subcontractor in furnishing end items or services of the type developed or produced on the program or effort; and
- (2) Receives access to technical data or computer software for performance of a Government contract that contains the clause at 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

"Detailed manufacturing or process data" means technical data that describe the steps, sequences, and conditions of manufacturing, processing or assembly used by the manufacturer to produce an item or component or to perform a process.

"Developed" means--

(1) (Applicable to technical data other than computer software documentation.) An item, component, or process exists and is workable. Thus, the item or component must have been constructed or the process practiced. Workability is generally established when the item, component, or process has been analyzed or tested sufficiently to demonstrate to reasonable people skilled in the applicable art that there is a high probability that it will operate as intended. Whether, how much, and what type of analysis or testing is required to establish workability depends on the nature of the item, component, or process, and the state of the art. To be considered "developed," the item, component, or process need not be at the stage where it could be offered for sale or sold on the commercial market, nor must the item, component, or process be actually reduced to practice within the meaning of Title 35 of the United States Code;

(2) A computer program has been successfully operated in a computer and tested to the extent sufficient to demonstrate to reasonable persons skilled in the art that the program can reasonably be expected to perform its intended purpose;

(3) Computer software, other than computer programs, has been tested or analyzed to the extent sufficient to demonstrate to reasonable persons skilled in the art that the software can reasonably be expected to perform its intended purpose; or

(4) Computer software documentation the contractor must deliver under a contract has been written, in any medium, in sufficient detail to comply with requirements under that contract.

"Developed exclusively at private expense" means development was accomplished entirely with costs charged to indirect cost pools, costs not allocated to a Government contract, or any combination thereof.

(1) Private expense determinations should be made at the lowest practicable level.

(2) Under fixed-price contracts, when total costs are greater than the firm-fixed-price or ceiling price of the contract, the additional development costs necessary to complete development shall not be considered when determining whether development was at Government, private, or mixed expense.

"Developed exclusively with Government funds" means development was not accomplished exclusively or partially at private expense.

"Developed with mixed funding" means development was accomplished partially with costs charged to indirect cost pools and/or costs not allocated to a government contract, and partially with costs charged directly to a government contract.

"Form, fit, and function data" means technical data that describe the required overall physical, functional, and performance characteristics (along with the qualification requirements, if applicable) of an item, component, or process to the extent necessary to permit identification of physically and functionally interchangeable items.

"Generated" means, with regard to technical data or computer software, first created in the performance of this contract.

"Government purpose" means any activity in which the United States Government is a party, including cooperative agreements with international or multi-national defense organizations, or sales or transfers by the United States Government to foreign governments or international organizations. Government purposes include competitive procurement, but do not include the rights to use, modify, reproduce, release, perform, display, or disclose technical data, computer software, or computer software documentation for commercial purposes or authorize others to do so.

"Government purpose rights" means the rights to--

(1) Use, modify, reproduce, release, perform, display, or disclose technical data, computer software, or computer software documentation within the Government without restriction; and

(2) Release or disclose technical data, computer software, or computer software documentation outside the Government and authorize persons to whom release or disclosure has been made to use, modify, reproduce, release, perform, display, or disclose that data or software for United States Government purposes.

"Limited rights" means the rights to use, modify, reproduce, release, perform, display, or disclose technical data, in whole or in part, within the Government. The Government may not, without the written permission of the party asserting limited rights, release or disclose the technical data outside the Government, use the technical data for manufacture, or authorize the technical data to be used by another party, except that the Government may reproduce, release, or disclose such data or authorize the use or reproduction of the data by persons outside the Government if--

(1) The reproduction, release, disclosure, or use is--

(i) Necessary for emergency repair and overhaul; or

(ii) A release or disclosure to--

(A) A covered Government support contractor in performance of its covered Government support contract for use, modification, reproduction, performance, display, or release or disclosure to a person authorized to receive limited rights technical data; or

(B) A foreign government, of technical data other than detailed manufacturing or process data, when use of such data by the foreign government is in the interest of the Government and is required for evaluational or informational purposes;

(2) The recipient of the technical data is subject to a prohibition on the further reproduction, release, disclosure, or use of the technical data; and

(3) The contractor or subcontractor asserting the restriction is notified of such reproduction, release, disclosure, or use.

"Minor modification" means a modification that does not significantly alter the nongovernmental function or purpose of the software or is of the type customarily provided in the commercial marketplace.

"Other than commercial computer software" means software that does not qualify as commercial computer software under the definition of "commercial computer software" of this clause.

"Restricted rights" apply only to other than commercial computer software and mean the Government's rights to--

(1) Use a computer program with one computer at one time. The program may not be accessed by more than one terminal or central processing unit or time shared unless otherwise permitted by this contract;

(2) Transfer a computer program to another Government agency without the further permission of the Contractor if the transferor destroys all copies of the program and related computer software documentation in its possession and notifies the licensor of the transfer. Transferred programs remain subject to the provisions of this clause;

(3) Make a reasonable number of copies of the computer software required for the purposes of safekeeping (archive), backup, modification, or other activities authorized in paragraphs (1), (2), (4) and (5) of this definition;

(4) Modify computer software provided that the Government may--

(i) Use the modified software only as provided in paragraphs (1) and (3) of this definition; and

(ii) Not release or disclose the modified software except as provided in paragraphs (2) and (5) of this clause;

(5) Use, modify, reproduce, perform, display, or release or disclose the computer software, and permit contractors, subcontractors, or covered Government support contractors to do so, for purposes set forth in subparagraph (i) of this paragraph, subject to the conditions set forth in subparagraphs (ii) of this paragraph:

(i)(A) In performance of service contracts (see FAR 37.101), to diagnose and correct deficiencies, to modify the software to enable a computer program to be combined with, adapted to, or merged with other computer programs, or when necessary to respond to urgent tactical situations, provided that the Government notifies the party which has granted restricted rights that any such release or disclosure to particular contractors or subcontractors was made;

(B) To perform emergency repairs or overhaul of items or components procured under this or a related contract, when necessary to perform such repairs or overhaul; or

(C) For the management and oversight of a program or effort by a person authorized to receive restricted rights computer software, including in the performance of covered Government support contracts.

(ii)(A) Any contractor, subcontractor, or covered Government support contractor receiving access to the software for the purposes of subparagraphs (i), (ii), or (iii) of this paragraph shall be subject to the use and nondisclosure agreement at 227.7103-7 or be performing a Government contract that contains the clause at 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends;

(B) The Government must not permit any recipient of the software under this paragraph to decompile, disassemble, or reverse engineer the software, or use software decompiled, disassembled, or reverse engineered by the Government pursuant to paragraph (4) of this definition, for any other purpose; and

(C) Any use, modification, reproduction, performance, display, release, or disclosure of the computer software under this paragraph remains subject to the limitations in paragraphs (1) through (4) of this definition.

"Small Business Innovation Research/Small Business Technology Transfer (SBIR/STTR) data" means all technical data or computer software developed or generated in the performance of a phase I, II, or III SBIR/STTR contract or subcontract.

"Technical data" means recorded information, regardless of the form or method of the recording, of a scientific or technical nature (including computer software documentation). The term does not include computer software or financial, administrative, cost or pricing, or management information, or information incidental to contract administration.

"Unlimited rights" means rights to use, modify, reproduce, perform, display, release, or disclose technical data, computer software, or computer software documentation in whole or in part, in any manner, and for any purpose whatsoever, and to have or authorize others to do so.

(b) *Applicability.* (1) Except as provided in paragraph (b)(2) of this clause--

(i) This clause governs all technical data related to other than commercial products or commercial services or to any portion of a commercial product or commercial service that was developed in any part at Government expense;

(ii) This clause governs all other than commercial computer software or other than commercial computer software documentation; and

(iii) The clause at DFARS 252.227-7990, Technical Data--Commercial Products and Commercial Services, governs the technical data related to any portion of a commercial product or commercial service that was developed exclusively at private expense.

(2) The clause at DFARS 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, governs technical data that are SBIR/STTR data.

(c) *Rights in technical data and computer software.* The Contractor grants or shall obtain for the Government the following royalty free, worldwide, nonexclusive, irrevocable license rights:

(1) *Unlimited rights.* The Government shall have unlimited rights in technical data, computer software, or computer software documentation that are--

(i) Data related to an item, component, or process which has been or will be developed exclusively with Government funds;

(ii) Studies, analyses, test data, or similar data produced for this contract, when the study, analysis, test, or similar work was specified as an element of performance;

(iii) Technical data created exclusively with Government funds in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes;

(iv) Form, fit, and function data;

(v) Technical data necessary for installation, operation, maintenance, or training purposes (other than detailed manufacturing or process data);

(vi) Government-furnished corrections or changes to--

(A) Technical data furnished to the Contractor by the Government; or

(B) Computer software or computer software documentation;

(vii) Data, computer software, or computer software documentation that is publicly available or previously released or disclosed by the Contractor or subcontractor without restrictions on further use, release or disclosure, other than a release or disclosure resulting from the sale, transfer, or other assignment of interest in the technical data to another party or the sale or transfer of some or all of a business entity or its assets to another party;

(viii) Data, computer software, or computer software documentation in which the Government has obtained unlimited rights under another Government contract or as a result of negotiations;

(ix) Data furnished to the Government, under this or any other Government contract or subcontract, with--

(A) Government purpose license rights or limited rights and the restrictive condition(s) has/have expired; or

(B) Government purpose rights and the Contractor's exclusive right to use such data for commercial purposes has expired; or

(x) Computer software developed exclusively with Government funds;

(xi) Computer software documentation the contractor must deliver under this contract; or

(xvii) Computer software or computer software documentation furnished to the Government, under this or any other Government contract or subcontract with--

(A) Restricted rights in computer software, limited rights in technical data, or government purpose license rights and the restrictive conditions have expired; or

(B) Government purpose rights and the Contractor's exclusive right to use such software or documentation for commercial purposes has expired.

(2) *Government purpose rights.* (i) The Government shall have government purpose rights for a 5-year period, or such other period as may be negotiated, in technical data or computer software--

(A) Related to items, components, or processes developed with mixed funding except when the Government is entitled to unlimited rights in such data or software as provided in paragraphs (c)(1)(ii), (c)(1)(iv) through (c)(1)(ix), and (c)(1)(xii) through (c)(1)(x)(v)(i) of this clause; or

(B) Created with mixed funding in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes.

(ii) The 5-year period, or such other period as may have been negotiated, shall begin upon execution of the contract, subcontract, letter contract (or similar contractual instrument), contract modification, or option exercise that required development of the items, components, or processes, development of the computer software, or creation of the data described in paragraph (c)(2)(i)(B) of this clause. Upon expiration of the 5-year or other negotiated period, the Government shall have unlimited rights in the technical data or computer software.

(iii) The Government will not release or disclose technical data or computer software in which it has government purpose rights unless--

(A) Prior to release or disclosure, the intended recipient completes the nondisclosure agreement at DFARS 227.7103-7; or

(B) The recipient is a Government contractor receiving access to the data or software for performance of a Government contract that contains the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

(iv) The Contractor has the exclusive right, including the right to license others, to use technical data or computer software in which the Government has obtained government purpose rights under this contract for any commercial purpose during the time period specified in the government purpose rights legend prescribed in paragraph (g)(3) of this clause.

(3) *Limited rights.* (i) Except as provided in paragraphs (c)(1)(ii) and (c)(1)(iv) through (c)(1)(ix) of this clause, the Government shall have limited rights in technical data--

(A) Related to items, components, or processes developed exclusively at private expense and marked with the limited rights legend prescribed in paragraph (g) of this clause; or

(B) Created exclusively at private expense in the performance of a contract that does not require the development, manufacture, construction, or production of items, components, or processes.

(ii) The Government will require a recipient of limited rights data for emergency repair or overhaul to destroy the data and all copies in its possession promptly following completion of the emergency repair/overhaul and to notify the Contractor that the data have been destroyed.

(iii) The Contractor, its subcontractors, and suppliers are not required to provide the Government additional rights to use, modify, reproduce, release, perform, display, or disclose technical data furnished to the Government with limited rights. However, if the Government desires to obtain additional rights in technical data in which it has limited rights, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. The Contractor shall ensure that any resulting license agreement, made part of the contract, lists or describes all technical data for which the Government has been granted additional rights and specifies those additional rights.

(iv) The Contractor acknowledges that--

(A) The Government is authorized to release or disclose limited rights data to covered Government support contractors;

(B) The Government will notify the contractor of such release or disclosure;

(C) The Contractor or the party asserting restrictions in the limited rights legend may--

(1) Require each covered Government support contractor to enter into a nondisclosure agreement directly with the Contractor or the party asserting restrictions regarding use of the data; or

(2) Waive in writing the requirement for a nondisclosure agreement; and

(D) Any such nondisclosure agreement shall address the restrictions on the covered Government support contractor's use of the limited rights data as set forth in the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The nondisclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the nondisclosure agreement.

(4) *Restricted rights.* (i) The Government shall have restricted rights in other than commercial computer software the contractor must deliver, or that is otherwise provided, to the Government under this contract that was developed exclusively at private expense.

(ii) The Contractor, its subcontractors, or suppliers are not required to provide the Government additional rights in other than commercial computer software delivered or otherwise provided to the Government with restricted rights. However, if the Government desires to obtain additional rights in such software, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. The Contractor shall ensure that any resulting license agreement, made part of the contract, lists or describes all other than commercial computer software for which the Government has been granted additional rights and specifies those additional rights.

(iii) The Contractor acknowledges that--

(A) The Government is authorized to release or disclose restricted rights computer software to covered Government support contractors;

(B) The Government will notify the Contractor of such release or disclosure;

(C) The Contractor or the party asserting restrictions in the restricted rights legend may--

(1) Require each such covered Government support contractor to enter into a nondisclosure agreement directly with the Contractor or the party asserting restrictions regarding the use of the software; or

(2) Waive in writing the requirement for a nondisclosure agreement; and

(D) Any such nondisclosure agreement shall address the restrictions on the covered Government support contractor's use of the restricted rights software as set forth in the clause at DFARS 252.227-7994, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The nondisclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the nondisclosure agreement.

(5) *Specifically negotiated license rights.* The standard license rights granted to the Government under paragraphs (c)(1) through (c)(4) of this clause, including the period during which the Government shall have government purpose rights in technical data or computer software, may be modified by mutual agreement but shall not provide the Government lesser rights than provided in the definition of "limited rights" or restricted rights" of this clause. Any negotiated rights shall be identified in a license agreement made part of this contract.

(6) *Prior government rights.* Technical data or computer software that will be delivered, furnished, or otherwise provided to the Government under this contract, in which the Government has previously obtained rights shall be delivered, furnished, or provided with the preexisting rights, unless--

(i) The parties have agreed otherwise; or

(ii) The restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose the data or software have expired or no longer apply.

(7) *Release from liability.* The Contractor agrees to release the Government from liability for any authorized release or disclosure of technical data or computer software made in accordance with this clause or any negotiated license agreement. This release from liability for the Government also applies to releases or disclosures made by a third party who received the data or software from an authorized recipient. For any unauthorized use or disclosure by such third parties of technical data or computer software marked with restrictive legends, the Contractor agrees to seek relief solely from that party.

(d) *Contractor rights in technical data and computer software.* The Contractor retains all rights not granted to the Government.

(e) *Third party copyrighted data and software.* The Contractor shall not, without the written approval of the Contracting Officer, incorporate any copyrighted data or software in the technical data or computer software the contractor must deliver under this contract unless the Contractor is the copyright owner or has obtained license rights for the Government of the appropriate scope set forth in paragraph (c) of this clause, and has affixed a statement of the license or licenses obtained on behalf of the Government and other persons to the data transmittal document.

(f) *Identification and delivery of data to be delivered with restrictions on use, release, or disclosure.* (1) This paragraph does not apply to restrictions based solely on copyright.

(2) Except as provided in paragraph (f)(3) of this clause, technical data or computer software that the Contractor asserts should be furnished to the Government with restrictions on use, release, or disclosure are identified in an attachment to this contract (the Attachment). The Contractor shall not deliver any data or software with restrictive markings unless the data are listed on the Attachment.

(3) In addition to the assertions made in the Attachment, the Contractor may identify other assertions after award when based on new information or inadvertent omissions unless the inadvertent omissions would have materially affected the source selection decision. The Contractor shall submit such identification and assertions to the Contracting Officer as soon as practicable prior to the scheduled date for delivery of the data or software, in the following format, and signed by an official authorized to contractually obligate the Contractor:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software			
The Contractor asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted--			
Technical Data or Computer Software to be Furnished With Restrictions ¹	Basis for Assertion ²	Asserted Rights Category ³	Name of Person Asserting Restrictions ⁴
(LIST)	(LIST)	(LIST)	(LIST)
—	—	—	—
¹ If the assertion is applicable to items, components or processes developed at private expense, identify both the data and each such item, component, or process.			
² Generally, the development of an item, component, process, or computer software at private expense, either exclusively or partially, is the only basis for asserting restrictions on the Government's rights to use, release, or disclose computer software or technical data related to such items, components, or processes. Indicate whether development was exclusively or partially at private expense. If development was not at private expense, enter the specific reason for asserting that the Government's rights should be restricted.			
³ Enter asserted rights category (e.g., rights in SBIR/STTR data generated under another contract, limited rights, restricted rights, or government purpose rights under this or a prior contract, or specifically negotiated licenses).			

⁴ Corporation, individual, or other person, as appropriate.

Date _____

Printed Name and Title _____

Signature _____

(End of identification and assertion)

(4) When requested by the Contracting Officer, the Contractor shall provide sufficient information to enable the Contracting Officer to evaluate the Contractor's assertions. The Contracting Officer reserves the right to add the Contractor's assertions to the Attachment and validate any listed assertion, at a later date, in accordance with the procedures in the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract.

(g) *Marking requirements.* The Contractor, and its subcontractors or suppliers, may only assert restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose technical data or computer software the Contractor must deliver under this contract by marking the deliverable data or software subject to restriction. Except as provided in paragraph (g)(7) of this clause, only the following legends are authorized under this contract: the government purpose rights legend at paragraph (g)(3) of this clause; the limited rights legend at paragraph (g)(4) of this clause; the restricted rights legend at paragraph (g)(5) of this clause; the special license rights legend at paragraph (g)(6) of this clause; and a notice of copyright as prescribed under 17 U.S.C. 401 or 402.

(1) *General marking instructions.* The Contractor, or its subcontractors or suppliers, shall conspicuously and legibly mark the appropriate legend on all technical data or computer software that qualify for such markings. The authorized legends shall be placed on the transmittal document or storage container and, for printed material, each page of the printed material containing technical data or computer software for which restrictions are asserted. When only portions of a page of printed material are subject to the asserted restrictions, such portions shall be identified by circling, underscoring, with a note, or other appropriate identifier. Technical data or computer software transmitted directly from one computer or computer terminal to another shall contain a notice of asserted restrictions. For software that will or might be used in combat or situations that simulate combat conditions, the contractor shall not insert instructions that interfere with or delay the operation of computer software in order to display a restrictive rights legend or other license statement at any time prior to or during use of the computer software, or otherwise cause such interference or delay, unless the Contracting Officer's written permission to deliver such software has been obtained prior to delivery. Reproductions of technical data or computer software or any portions thereof subject to asserted restrictions shall also reproduce the asserted restrictions.

(2) *Omitted markings.* (i) Technical data or computer software delivered or otherwise provided under this contract without restrictive markings will be presumed to have been delivered with unlimited rights. To the extent practicable, if the Contractor has requested permission (see paragraph (g)(2)(ii) of this clause) to correct an inadvertent omission of markings, the Contracting Officer will not release or disclose the technical data or computer software pending evaluation of the request.

(ii) The Contractor may request permission to have conforming and justified restrictive markings placed on unmarked technical data or computer software at its expense. The request must be received by the Contracting Officer within 6 months following the furnishing or delivery of such technical data or computer software, or any extension of that time approved by the Contracting Officer. The Contractor shall--

(A) Identify the technical data or computer software that should have been marked;

(B) Demonstrate that the omission of the marking was inadvertent, the proposed marking is justified and conforms with the requirements for the marking of technical data or computer software contained in this clause; and

(C) Acknowledge, in writing, that the Government has no liability with respect to any disclosure, reproduction, or use of the technical data or computer software made prior to the addition of the marking or resulting from the omission of the marking.

(3) *Government purpose rights markings.* Technical data or computer software delivered or otherwise furnished to the Government with government purpose rights shall be marked as follows:

GOVERNMENT PURPOSE RIGHTS

Contract Number _____

Contractor Name _____

Contractor Address _____

Expiration Date ____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these technical data or computer software are restricted by the government purpose rights license in the DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause contained in the above identified contract. No restrictions apply after the expiration date shown above. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(4) *Limited rights markings.* Data delivered or otherwise furnished to the Government with limited rights shall be marked as follows:

LIMITED RIGHTS

Contract Number ____

Contractor Name ____

Contractor Address ____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these technical data are restricted by the limited rights license in the DFARS 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause contained in the above identified contract. Any reproduction of technical data or portions thereof marked with this legend must also reproduce the markings. Any person, other than the Government, who has been provided access to such data must promptly notify the above named Contractor.

(End of legend)

(5) Restricted rights markings. Software delivered or otherwise furnished to the Government with restricted rights shall be marked as follows:

RESTRICTED RIGHTS

Contract Number ____

Contractor Name ____

Contractor Address ____

The Government's rights to use, modify, reproduce, release, perform, display, or disclose this software are restricted by the restricted rights license in the DFARS 252.227-7014, Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation, clause contained in the above identified contract. Any reproduction of computer software or portions thereof marked with this legend must also reproduce the markings. Any person, other than the Government, who has been provided access to such software must promptly notify the above named Contractor.

(End of legend)

(6) Special license rights markings. (i) Technical data or computer software in which the Government's rights stem from a specifically negotiated license shall be marked as follows:

SPECIAL LICENSE RIGHTS

The Government's rights to use, modify, reproduce, release, perform, display, or disclose these data or software are restricted by Contract Number *[Insert contract number]* ____, *License Number [Insert license identifier]* _____. Any reproduction of technical data, computer software, or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(ii) For purposes of this clause, special licenses do not include government purpose license rights acquired under a prior contract (see paragraph (c)(5) of this clause).

(7) *Preexisting data or software markings.* If the terms of a prior contract or license permitted the Contractor to restrict the Government's rights to use, modify, reproduce, release, perform, display, or disclose technical data or computer software deliverable under this contract, and those restrictions are still applicable, the Contractor may mark such data or software with the appropriate restrictive legend for which the data or software qualified under the prior contract or license. The Contractor shall follow the marking procedures in paragraph (g)(1) of this clause.

(h) *Contractor procedures and records.* Throughout performance of this contract, the Contractor and its subcontractors or suppliers that will deliver technical data or computer software with other than unlimited rights, shall--

(1) Have, maintain, and follow written procedures sufficient to assure that restrictive markings are used only when authorized by the terms of this clause; and

(2) Maintain records sufficient to justify the validity of any restrictive markings on technical data or computer software delivered under this contract.

(i) *Removal of unjustified and nonconforming markings--*(1) *Unjustified technical data markings.* The rights and obligations of the parties regarding the validation of restrictive markings on technical data or computer software delivered or to be delivered under this contract are contained in the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract. Notwithstanding any provision of this contract concerning inspection and acceptance, the Government may ignore or, at the Contractor's expense, correct or strike a marking if, in accordance with the procedures in the Validation of Asserted Restrictions clause of this contract, a restrictive marking is determined to be unjustified.

(2) *Nonconforming technical data or computer software markings.* A nonconforming marking is a marking placed on technical data or computer software delivered or otherwise furnished to the Government under this contract that is not in the format authorized by this contract. Correction of nonconforming markings is not subject to the DFARS 252.227-7997, Validation of Asserted Restrictions, clause of this contract. If the Contracting Officer notifies the Contractor of a nonconforming marking and the Contractor fails to remove or correct such marking within 60 days, the Government may ignore or, at the Contractor's expense, remove or correct any nonconforming marking.

(j) *Relation to patents.* Nothing contained in this clause shall imply a license to the Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Government under any patent.

(k) *Limitation on charges for rights in technical data, computer software, or computer software documentation.* (1) The Contractor shall not charge to this contract any cost, including, but not limited to, license fees, royalties, or similar charges, for rights in technical data, computer software, or computer software documentation the Contractor must deliver under this contract when--

(i) The Government has acquired, by any means, the same or greater rights in the data or software; or

(ii) The data or software are available to the public without restrictions.

(2) The limitation in paragraph (k)(1) of this clause--

(i) Includes costs charged by a subcontractor or supplier, at any tier, or costs incurred by the Contractor to acquire rights in subcontractor or supplier technical data, computer software, or computer software documentation, if the subcontractor or supplier has been paid for such rights under any other Government contract or under a license conveying the rights to the Government; and

(ii) Does not include the reasonable costs of reproducing, handling, or mailing the documents or other media in which the technical data, computer software, or computer software documentation will be delivered.

(l) *Applicability to subcontractors or suppliers.* (1) The Contractor shall ensure that the rights afforded its subcontractors and suppliers under 10 U.S.C. 3771-3775, 10 U.S.C. 3781-3786, and the identification, assertion, and delivery processes of paragraph (f) of this clause are recognized and protected.

(2)(i) Except as provided in paragraph (l)(2)(ii) of this clause, the Contractor shall include this clause in any subcontract or contractual instrument under which technical data or computer software will be obtained from a subcontractor or supplier for delivery to the Government. This requirement applies to technical data or software related to other than commercial products or commercial services, or related to commercial products or commercial services developed in any part with Government funds. The Contractor shall also require its subcontractors and suppliers to include this clause, without alteration except to identify the parties, in any contractual instrument under which technical data or computer software will be obtained from a subcontractor or supplier for delivery to the Government. This clause will govern the technical data related to an other than commercial product or service or to any portion of a commercial product or commercial service that was developed in any part at Government expense, and the clause at 252.227-7990 will govern the technical data related to any portion of a commercial item that was developed exclusively at private expense. No other clause shall be used to expand or reduce the Government's, the Contractor's, or a higher-tier subcontractor's or supplier's rights in a subcontractor's or supplier's technical data, computer software, or computer software documentation.

(ii) The Contractor shall use the clause at DFARS 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, to govern technical data, computer software, or computer software documentation that is SBIR/STTR data.

(3) Technical data, computer software, or computer software documentation a subcontractor or supplier must deliver shall normally be delivered to the next higher-tier contractor, subcontractor, or supplier. However, when there is a requirement in the prime contract for data which may be submitted with other than unlimited rights by a subcontractor or supplier, then said subcontractor or supplier may fulfill its requirement by submitting such data or software directly to the Government, rather than through a higher-tier contractor, subcontractor, or supplier.

(4) The Contractor and higher-tier subcontractors or suppliers shall not use the award of a contract as economic leverage to obtain rights in technical data, computer software, or computer software documentation from their subcontractors or suppliers.

(5) In no event shall the Contractor use its obligation to recognize and protect subcontractor or supplier rights in technical data, computer software, or computer software documentation as an excuse for failing to satisfy its contractual obligations to the Government.

(End of clause)

252.232-7007 Limitation of Government's Obligation.

(Apr 2014)

LIMITATION OF GOVERNMENT'S OBLIGATION (APR 2014)

The use of this clause will be determined at the Task Order level, when applicable.

(a) Contract line item(s) /Contracting Officer insert after negotiations/ is/are incrementally funded. For this/these item(s), the sum of \$ /Contracting Officer insert after negotiations/ of the total price is presently available for payment and allotted to this contract. An allotment schedule is set forth in paragraph (j) of this clause.

(b) For item(s) identified in paragraph (a) of this clause, the Contractor agrees to perform up to the point at which the total amount payable by the Government, including reimbursement in the event of termination of those item(s) for the Government's convenience, approximates the total amount currently allotted to the contract. The Contractor is not authorized to continue work on those item(s) beyond that point. The Government will not be obligated in any event to reimburse the Contractor in excess of the amount allotted to the contract for those item(s) regardless of anything to the contrary in the clause entitled "Termination for Convenience of the Government." As used in this clause, the total amount payable by the Government in the event of termination of applicable contract line item(s) for convenience includes costs, profit, and estimated termination settlement costs for those item(s).

(c) Notwithstanding the dates specified in the allotment schedule in paragraph (j) of this clause, the Contractor will notify the Contracting Officer in writing at least ninety days prior to the date when, in the Contractor's best judgment, the work will reach the point at which the total amount payable by the Government, including any cost for termination for convenience, will approximate 85 percent of the total amount then allotted to the contract for performance of the applicable item(s). The notification will state (1) the estimated date when that point will be reached and (2) an estimate of additional funding, if any, needed to continue performance of applicable line items up to the next scheduled date for allotment of funds identified in paragraph (j) of this clause, or to a mutually agreed upon substitute date. The notification will also advise the Contracting Officer of the estimated amount of additional funds that will be required for the timely performance of the item(s) funded pursuant to this clause, for a subsequent period as may be specified in the allotment schedule in paragraph (j) of this clause or otherwise agreed to by the parties. If after such notification additional funds are not allotted by the date identified in the Contractor's notification, or by an agreed substitute date, the Contracting Officer will terminate any item(s) for which additional funds have not been allotted, pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(d) When additional funds are allotted for continued performance of the contract line item(s) identified in paragraph (a) of this clause, the parties will agree as to the period of contract performance which will be covered by the funds. The provisions of paragraphs (b) through (d) of this clause will apply in like manner to the additional allotted funds and agreed substitute date, and the contract will be modified accordingly.

(e) If, solely by reason of failure of the Government to allot additional funds, by the dates indicated below, in amounts sufficient for timely performance of the contract line item(s) identified in paragraph (a) of this clause, the Contractor incurs additional costs or is delayed in the performance of the work under this contract and if additional funds are allotted, an equitable adjustment will be made in the price or prices (including appropriate target, billing, and ceiling prices where applicable) of the item(s), or in the time of delivery, or both. Failure to agree to any such equitable adjustment hereunder will be a dispute concerning a question of fact within the meaning of the clause entitled "Disputes."

(f) The Government may at any time prior to termination allot additional funds for the performance of the contract line item(s) identified in paragraph (a) of this clause.

(g) The termination provisions of this clause do not limit the rights of the Government under the clause entitled "Default." The provisions of this clause are limited to the work and allotment of funds for the contract line item(s) set forth in paragraph (a) of this clause. This clause no longer applies once the contract is fully funded except with regard to the rights or obligations of the parties concerning equitable adjustments negotiated under paragraphs (d) and (e) of this clause.

(h) Nothing in this clause affects the right of the Government to terminate this contract pursuant to the clause of this contract entitled "Termination for Convenience of the Government."

(i) Nothing in this clause shall be construed as authorization of voluntary services whose acceptance is otherwise prohibited under 31 U.S.C. 1342.

(j) The parties contemplate that the Government will allot funds to this contract in accordance with the following schedule:

On execution of contract	\$ ____
(month) (day), (year) ____	\$ ____
(month) (day), (year) ____	\$ ____
(month) (day), (year) ____	\$ ____

(End of clause)

List of Attachments

Number	Attachment Name	Attachment Description	Reference Identifier	Date	Line Item
01	PWS - Deployment Solutions	Performance Work Statement		10 Mar 2026	
02	Quality Assurance Surveillance Plan (QASP)	Performance Work Statement		25 Feb 2026	
03	Exhibit A001 Quality Control Plan CDRL	Contract Data Requirements List (CDRL)		25 Feb 2026	
04	Exhibit A002 Training Curriculum CDRL	Contract Data Requirements List (CDRL)		30 Mar 2026	
05	Exhibit A003 Deployment Approach CDRL	Contract Data Requirements List (CDRL)		25 Feb 2026	
06	Exhibit A004 Transition-In Plan CDRL	Contract Data Requirements List (CDRL)		25 Feb 2026	
07	Exhibit A005 Transition-Out Plan CDRL	Contract Data Requirements List (CDRL)		25 Feb 2026	
08	Exhibit A006 CSP CDRL	Contract Data Requirements List (CDRL)		25 Feb 2026	
09	Exhibit A007 CWBS CDRL	Contract Data Requirements List (CDRL)		25 Feb 2026	
10	Exhibit A008 Cost and Hour Report (FlexFile) CDRL	Contract Data Requirements List (CDRL)		25 Feb 2026	
11	Exhibit A009 Technical Data Report CDRL	Contract Data Requirements List (CDRL)		25 Feb 2026	
12	Exhibit A010 Implementation Plan CDRL	Contract Data Requirements List (CDRL)		25 Feb 2026	
13	Exhibit A011 Integrated Master Schedule CDRL	Contract Data Requirements List (CDRL)		25 Feb 2026	
14	DHMS Deployment DD2794 CSDR Plan	Contract Data Requirements List (CDRL)		25 Feb 2026	
15	PEO DHMS Operational View	Drawings		25 Feb 2026	
16	Organizational Conflict of Interest (OCI) Declaration and Disclosure	OCI Declaration		30 Mar 2026	

17	DHA Common Federal Training List	Performance Work Statement		25 Feb 2026	
18	NDA DHA Form 49	NDA		25 Feb 2026	
19	PEO DHMS Deployment Ordering Guide	Scope and Ordering Guide		08 Apr 2026	

Representations, Certification, & Other Statements

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-11	Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions.	Sep 2024		
52.229-11	Tax on Certain Foreign Procurements-Notice and Representation.	Jun 2020		
52.240-90	Security Prohibitions and Exclusions Representations and Certifications. (Deviation)	Feb 2026		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.203-7005	Representation Relating to Compensation of Former DoD Officials.	Sep 2022		
252.225-7031	Secondary Arab Boycott of Israel .	Jun 2005		
252.225-7055	Representation Regarding Business Operations with the Maduro Regime.	May 2022		
252.225-7059	Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region-Representation.	Jun 2023		
252.239-7009	Representation of Use of Cloud Computing.	Sep 2015		

FAR Clauses Incorporated by Full Text

52.204-8	Annual Representations and Certifications. (DEVIATION 2025-O0003 and 2025-O0004)	(Mar 2025)	Deviation 2025-O0004	(Mar 2025)
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ANNUAL REPRESENTATIONS AND CERTIFICATIONS (MAR 2025)(DEVIATION 2025-O0003 AND 2025-O0004)

(a) (1) The North American Industry Classification System (NAICS) code for this acquisition is ____[insert NAICS code].

(2) The small business size standard is ____[insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519 if the acquisition-

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b) (1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

(i) ☐ Paragraph (d) applies.

(ii) ☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless-

(A) The acquisition is to be made under the simplified acquisition procedures in part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that-

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services-Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations-Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance-Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) [Reserved]

(xv) [Reserved]

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA-designated items.

(xix) [Reserved]

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

(A) If the acquisition value is less than \$50,000, the basic provision applies.

(B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.

(C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan-Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran-Representation and Certifications. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

☐ (i) 52.204-17, Ownership or Control of Offeror.

☐ (ii) 52.204-20, Predecessor of Offeror.

☐ (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

☐ (iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Certification.

☐ (v) 52.222-52, Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Certification.

☐ (vi) 52.227-6, Royalty Information.

☐ (A) Basic.

☐ (B) Alternate I.

☐ (vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The offeror has completed the annual representations and certifications electronically in SAM website accessed through <https://www.sam.gov>. After reviewing the SAM information, the offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [*offeror to insert changes, identifying change by clause number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause #	Title	Date	Change

Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-90 Offeror Identification. (Deviation)

(Feb 2026)

OFFEROR IDENTIFICATION (FEB 2026) (DEVIATION)

If the Offeror will not have an active Federal Government contracts registration in the System for Award Management (<https://www.sam.gov>) when submitting its offer, it shall complete paragraphs (c) and (d) of this provision and include its responses with its offer.

(a) *Definitions.* As used in this provision-

Commercial and Government Entity (CAGE) code has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

Common parent means that corporate entity that owns or controls an affiliated group of corporations that files its Federal income tax returns on a consolidated basis, and of which the offeror is a member.

Electronic Funds Transfer (EFT) indicator means a bank account identifier to establish additional System for Award Management records for identifying alternative EFT accounts (see part 32) for the same entity.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest-level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees. There may be more than one immediate owner (e.g., joint ventures).

Predecessor means an entity whose assets were acquired by the offeror or another entity (most often through merger or acquisition) and whose affairs are now carried out by the offeror or the other entity under a new name.

Taxpayer Identification Number means the number required by the Internal Revenue Service (IRS) to be used by the offeror to report income tax and other returns. It may be either a Social Security Number or an Employer Identification Number.

Unique entity identifier (UEI) has the meaning provided in the clause at FAR 52.204-91, Contractor Identification, of this solicitation.

(b) *Unique entity identifier (UEI).*

(1) The Offeror shall enter, in the block with its name and address on the cover page of its offer, the annotation "Unique Entity Identifier" followed by the UEI that identifies the Offeror's name and address exactly as stated in the offer. The Offeror shall also enter its EFT indicator, if applicable.

(2) If the Offeror does not have a UEI, it shall go to <https://www.sam.gov> to obtain one. The Government will independently validate the existence and uniqueness of the Offeror before assigning a UEI.

(c) *Taxpayer identification.* The Offeror shall provide with its offer the following information that is necessary to comply with debt collection requirements of 31 U.S.C. 7701(c) and 3325(d); reporting requirements of 26 U.S.C. 6041, 6041A, and 6050M; and the implementing IRS regulations:

(1) Taxpayer identification number (TIN)

☐ TIN: ____;

☐ TIN has been applied for; or

☐ TIN is not required because:

☐ Offeror is a nonresident alien, foreign corporation, or foreign partnership that does not have income effectively connected with the conduct of a trade or business in the United States and does not have an office or place of business or a fiscal paying agent in the United States;

☐ Offeror is an agency or instrumentality of a foreign government; or

☐ Offeror is an agency or instrumentality of the Federal Government.

(2) *Type of organization.*

☐ Sole proprietorship;

☐ Partnership;

☐ Corporate entity (not tax-exempt);

☐ Corporate entity (tax-exempt);

☐ Government entity (Federal, State, or local);

☐ Foreign government;

☐ International organization per 26 CFR 1.6049-4; or

☐ Other.

(3) *Common parent.*

☐ Offeror is not owned or controlled by a common parent as defined in paragraph (a) of this provision; or

☐ Name and TIN of common parent:

Name: _____

TIN: _____

(4) The TIN provided in paragraph (c)(1) of this provision may be matched with IRS records to verify the accuracy of the Offeror's TIN. The Government may use the TIN to collect and report on any delinquent amounts arising out of the Offeror's relationship with the Government (31 U.S.C. 7701(c)(3)).

(d) Commercial and Government Entity (CAGE) code.

(1) The Offeror shall provide its CAGE code with its offer with its name and location address or otherwise include it prominently in its offer. The CAGE code shall be for that name and location address. Insert the word "CAGE" before the code. The Offeror may obtain a CAGE code as indicated in the following table.

If the Offeror is...	Then...
Located in the United States or its outlying areas	Submit a request to the DLA CAGE Branch via https://cage.dla.mil
Located outside the United States and its outlying areas and its country is a member of the North Atlantic Treaty Organization (NATO) or a sponsored nation	Contact the appropriate National Codification Bureau (https://www.nato.int/structur/ac/135/about/contacts)
Located outside the United States and its outlying areas and its country is not a member of NATO or a sponsored nation	Contact the NATO Support and Procurement Agency (NSPA) (https://eportal.nspa.nato.int/AC135Public/scage/CageList.aspx)

- (2) The Offeror shall provide the CAGE code and legal business name (Do not use a "doing business as" name) for-
- (i) Its immediate owner(s), if any;
 - (ii) Its highest-level owner, if any; and
 - (iii) Any predecessor(s), or predecessor of an Offeror's predecessor, that held a Federal contract or grant within the last three years.

Owner Type	CAGE Code	Legal Business Name
Immediate owner	_____	_____
Highest-level owner	_____	_____
Predecessor*	=====	=====

* Predecessor CAGE code may be marked "Unknown."

(3) If the Offeror has more than one immediate owner (such as a joint venture), give the information for each owner (or joint venture participant). If the Offeror has more than one predecessor, provide information for each predecessor in reverse chronological order.

(End of provision)

52.209-7 Information Regarding Responsibility Matters. (Deviation)

(Feb 2026)

INFORMATION REGARDING RESPONSIBILITY MATTERS (FEB 2026) (DEVIATION)

(a) *Definitions.* As used in this provision-

Administrative proceeding means a non-judicial process that is adjudicatory in nature in order to make a determination of fault or liability (*e.g.*, Securities and Exchange Commission Administrative Proceedings, Civilian Board of Contract Appeals Proceedings, and Armed Services Board of Contract Appeals Proceedings). This includes administrative proceedings at the Federal and State level but only in connection with performance of a Federal contract or grant. It does not include agency actions such as contract audits, site visits, corrective plans, or inspection of deliverables.

Federal contracts and grants with total value greater than \$10,000,000 means-

- (1) The total value of all current, active contracts and grants, including all priced options; and
- (2) The total value of all current, active orders including all priced options under indefinite-delivery, indefinite-quantity, 8(a), or requirements contracts (including task and delivery and multiple-award Schedules).

Principal means an officer, director, owner, partner, or a person having primary management or supervisory responsibilities within a business entity (*e.g.*, general manager; plant manager; head of a division or business segment; and similar positions).

(b) The offeror ☐ has ☐ does not have current active Federal contracts and grants with total value greater than \$10,000,000.

(c) If the offeror checked "has" in paragraph (b) of this provision, the offeror represents, by submission of this offer, that the information it has entered in the Federal Awardee Performance and Integrity Information System (FAPIS) is current, accurate, and complete as of the date of submission of this offer with regard to the following information:

(1) Whether the offeror, and/or any of its principals, has or has not, within the last five years, in connection with the award to or performance by the offeror of a Federal contract or grant, been the subject of a proceeding, at the Federal or State level that resulted in any of the following dispositions:

- (i) In a criminal proceeding, a conviction.
- (ii) In a civil proceeding, a finding of fault and liability that results in the payment of a monetary fine, penalty, reimbursement, restitution, or damages of \$5,000 or more.
- (iii) In an administrative proceeding, a finding of fault and liability that results in-
 - (A) The payment of a monetary fine or penalty of \$5,000 or more; or
 - (B) The payment of a reimbursement, restitution, or damages in excess of \$100,000.

(iv) In a criminal, civil, or administrative proceeding, a disposition of the matter by consent or compromise with an acknowledgment of fault by the Contractor if the proceeding could have led to any of the outcomes specified in paragraphs (c)(1)(i), (c)(1)(ii), or (c)(1)(iii) of this provision.

(2) If the offeror has been involved in the last five years in any of the occurrences listed in (c)(1) of this provision, whether the offeror has provided the requested information with regard to each occurrence.

(d) The offeror shall post the information in paragraphs (c)(1)(i) through (c)(1)(iv) of this provision in FAPIIS as required through maintaining an active registration in the System for Award Management, which can be accessed via <https://www.sam.gov> (see 52.204-7).

(End of provision)

52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. (Deviation) (Feb 2026)

REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2026) (DEVIATION)

(a) The Government will not enter into a contract with any corporation that-

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that-

(1) It is ☐ is not ☐ a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is ☐ is not ☐ a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7016 Covered Defense Telecommunications Equipment or Services-Representation. (Dec 2019)

COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (DEC 2019)

(a) *Definitions.* As used in this provision, "covered defense telecommunications equipment or services" has the meaning provided in the clause 252.204-7018, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services.

(b) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered defense telecommunications equipment or services".

(c) *Representation.* The Offeror represents that it ☐ does, ☐ does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(End of provision)

252.204-7017 Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services-Representation. (May 2021)

PROHIBITION ON THE ACQUISITION OF COVERED DEFENSE TELECOMMUNICATIONS EQUIPMENT OR SERVICES-REPRESENTATION (MAY 2021)

The Offeror is not required to complete the representation in this provision if the Offeror has represented in the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does not provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument."

(a) *Definitions.* "Covered defense telecommunications equipment or services," "covered mission," "critical technology," and "substantial or essential component," as used in this provision, have the meanings given in the 252.204-7018 clause, Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services, of this solicitation.

(b) *Prohibition.* Section 1656 of the National Defense Authorization Act for Fiscal Year 2018 (Pub. L. 115-91) prohibits agencies from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system.

(c) *Procedures.* The Offeror shall review the list of excluded parties in the System for Award Management (SAM) at <https://www.sam.gov> for entities that are excluded when providing any equipment, system, or service to carry out covered missions that uses covered defense telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system, unless a waiver is granted.

(d) *Representation.* If in its annual representations and certifications in SAM the Offeror has represented in paragraph (c) of the provision at 252.204-7016, Covered Defense Telecommunications Equipment or Services-Representation, that it "does" provide covered defense telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument, then the Offeror shall complete the following additional representation:

The Offeror represents that it ☐ will ☐ will not provide covered defense telecommunications equipment or services as a part of its offered products or services to DoD in the performance of any award resulting from this solicitation.

(e) *Disclosures.* If the Offeror has represented in paragraph (d) of this provision that it "will provide covered defense telecommunications equipment or services," the Offeror shall provide the following information as part of the offer:

(1) A description of all covered defense telecommunications equipment and services offered (include brand or manufacturer; product, such as model number, original equipment manufacturer (OEM) number, manufacturer part number, or wholesaler number; and item description, as applicable).

(2) An explanation of the proposed use of covered defense telecommunications equipment and services and any factors relevant to determining if such use would be permissible under the prohibition referenced in paragraph (b) of this provision.

(3) For services, the entity providing the covered defense telecommunications services (include entity name, unique entity identifier, and Commercial and Government Entity (CAGE) code, if known).

(4) For equipment, the entity that produced or provided the covered defense telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known).

(End of provision)

**252.204-7998 Alternate A, Annual Representations and Certifications. (DEVIATION 2026-O0043) (Feb 2026) Alternate A (Feb 2026)
Deviation 2026-O0043 (Feb 2026)**

Alternate A, Annual Representations and Certifications (DEVIATION 2026-O0043)(FEB 2026)

Include the following paragraphs (e), (f), and (g) in the provision at FAR 52.204-7:

(e)(1) If the provision at FAR 52.204-7, System for Award Management - Registration, is included in this solicitation, paragraph (g) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management - Registration, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (g) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ (i) Paragraph (g) applies.

☐ (ii) Paragraph (g) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(f)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: *[Contracting Officer check as appropriate.]*

☐ (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

☐ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

☐ (iii) 252.225-7020, Trade Agreements Certificate.

☐ Use with Alternate I.

☐ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

☐ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

- ☐ Use with Alternate I.
- ☐ Use with Alternate II.
- ☐ Use with Alternate III.
- ☐ Use with Alternate IV.
- ☐ Use with Alternate V.

☐ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

☐ (vii) 252.232-7015, Performance-Based Payments--Representation.

(g) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov> After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-7 and paragraph (f) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.203-1); except for the changes identified below [*Offeror to insert changes, identifying change by provision number, title, date*]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	Title	Date	Change
—	—	—	—
—	—	—	—
—	—	—	—
—	—	—	—
—	—	—	—

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.227-7992 Identification and Assertion of Use, Release, or Disclosure Restrictions.
(DEVIATION 2026-O0036)

(Feb 2026) Deviation 2026-O0036 (Feb 2026)

IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (DEVIATION 2026-O0036) (FEB 2026)

(a) *Definitions.* As used in this provision--

"Computer software" is defined in--

(1) The 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"SBIR/STTR data" is defined in the 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

"Technical data" is defined in--

(1) The 252.227-7989, Rights in Technical Data, Computer Software, and Computer Software Documentation--Other Than Commercial Products and Commercial Services, clause of this solicitation; or

(2) If this solicitation contemplates a contract under the Small Business Innovation Research Program or Small Business Technology Transfer Program, the 252.227-7993, Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research Program and Small Business Technology Transfer Program, clause of this solicitation.

(b) The identification and assertion requirements in this provision apply only to technical data, including computer software documentation, or computer software the Contractor must deliver with other than unlimited rights. For contracts to be awarded under the Small Business Innovation Research (SBIR) Program or Small Business Technology Transfer Program (STTR) Program, these requirements apply to SBIR/STTR data that will be generated under the resulting contract and will be delivered with SBIR/STTR data rights and to any other data that will be delivered with other than unlimited rights. Notification and identification are not required for restrictions based solely on copyright.

(c) Offers submitted in response to this solicitation shall identify, to the extent known at the time an offer is submitted to the Government, the technical data or computer software that the Offeror, its subcontractors or suppliers, or potential subcontractors or suppliers, assert should be furnished to the Government with restrictions on use, release, or disclosure.

(d) The Offeror's assertions, including the assertions of its subcontractors or suppliers or potential subcontractors or suppliers, shall be submitted as an attachment to its offer in the following format, dated and signed by an official authorized to contractually obligate the Offeror:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software			
The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:			
Technical data or computer software to be delivered with restrictions ¹	Basis for assertion ²	Asserted rights category ³	Name of person asserting restrictions ⁴
(LIST) ⁵	(LIST)	(LIST)	(LIST)
—	—	—	—
¹ For technical data (other than computer software documentation) related to items, components, or processes developed at private expense, identify both the deliverable technical data and each such items, component, or process. For computer software or computer software documentation identify the software or documentation.			
² Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data relate. The Government's rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.			
³ Enter asserted rights category (e.g., government purpose license rights from a prior contract, rights in SBIR/STTR data generated under a contract resulting from this solicitation or under another contract, limited, restricted, or government purpose rights under a contract resulting from this solicitation or under a prior contract, or specially negotiated licenses).			
⁴ Corporation, individual, or other person, as appropriate.			
⁵ Enter "none" when all data or software will be submitted without restrictions.			

Date ____

Printed Name and Title ____

Signature ____

(End of identification and assertion)

(e) An offeror's failure to submit, complete, or sign the notification and identification required by paragraph (d) of this provision with its offer may render the offer ineligible for award.

(f) If the Offeror is awarded a contract, the assertions identified in paragraph (d) of this provision shall be listed in an attachment to that contract. Upon request by the Contracting Officer, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate any listed assertion.

(End of provision)

Instructions, Conditions, & Notices to Offerors or Quoters

FAR Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
52.203-18	Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation.	Jan 2017		
52.204-7	System for Award Management-Registration. (Deviation)	Feb 2026		
52.207-6	Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts).	Aug 2024		
52.216-27	Single or Multiple Awards.	Oct 1995		

DFARS Clauses Incorporated by Reference

Number	Title	Effective Date	Alternate/ Deviation	Variation Effective Date
252.204-7024	Notice on the Use of the Supplier Performance Risk System.	Mar 2023		
252.215-7994	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data. (DEVIATION 2026-O0048)	Mar 2026	Deviation 2026-O0048	Mar 2026
252.215-7996	Notification to Offerors-Postaward Debriefings. (DEVIATION 2026-O0048)	Mar 2026	Deviation 2026-O0048	Mar 2026
252.239-7017	Notice of Supply Chain Risk.	Dec 2022		

FAR Clauses Incorporated by Full Text

52.212-1 Instructions to Offerors-Commercial Products and Commercial Services. (Deviation) (Tailored) (Feb 2026)

52.212-1 INSTRUCTIONS TO OFFERORS--COMMERCIAL ITEMS (FEB 2026) (TAILORED)

1.0 Solicitation Information

This solicitation seeks full and open competitive offers. The North American Industry Classification System (NAICS) code is delineated on the SF-1449 cover sheet (including NAICS and size standards).

The Government intends to award multiple award contracts to each and all qualifying offerors in response to the Program Executive Office - Defense Healthcare Management System (PEO DHMS) Deployment Solutions solicitation in accordance with 10 U.S.C. 3206(c) implemented by RFO 15.104(b)(1)(ii). Therefore, Price will not be an evaluation factor for this solicitation.

2.0 General Instructions

Points of Contact (POC): Below are the only points of contact for this solicitation. All questions or concerns shall be submitted to the Contracting Officer and Contract Specialist, using the submission instructions below. All proposal submissions shall be submitted using the instructions in Section 2.2 below. Service of protest to the Agency shall be submitted to the e-mail addresses below.

Table 1: Points of Contact

Name	Title	Email
Ms. Joyce Elaine Pace-Reed	Procuring Contracting Officer	joyce.e.pace-reed.civ@health.mil
Ms. Samantha Deluca	Contract Specialist	hailey.s.deluca.civ@health.mil

2.1. Instructions to Offerors

2.1.1 General Instructions

a. This section provides general guidance for preparing proposals as well as specific instructions on the format and content of the proposal. The offeror's proposal must include all data and information requested and must be submitted in accordance with these instructions. **Non-conformance with these instructions and/or submittal of an incomplete package may result in an offer being considered unacceptable and the proposal may not be evaluated.**

b. Alternate proposals will not be accepted. If an Offeror (1) fails or refuses to assent to any of the terms and conditions of this request for proposal (RFP), (2) proposes additional terms or conditions, (3) conditions its proposal with assumptions or (4) fails to submit any of the information required by this solicitation, then the Government may consider the offer to be unacceptable and therefore ineligible for contract award.

c. The proposal shall be clear, concise, and shall include sufficient detail for effective evaluation and for substantiating the validity of stated claims. Offerors shall assume the Government has no prior knowledge of its facilities and experience and will base its evaluation on the information presented in the offeror's proposal.

d. Elaborate brochures or documentation, binding, detailed artwork, or other embellishments are unnecessary and are not desired. Do not include resumes.

e. Proposals must not include classified information.

f. All the requirements in the RFP are mandatory. Offerors' proposal submission represents that the firm will perform all the requirements specified in the solicitation.

g. The Government may consider any failure to comply with these instructions to be indicative of what could be expected from an offeror during contract performance and may consider it a weakness of the proposal in the appropriate factors. Statements such as "will comply," "noted and understood," "in accordance with best/industry practices/standards," etc., without supporting narrative are not acceptable. **Cursory responses or responses that merely reiterate or paraphrase the solicitation language, or other information provided by the Government, will not be considered to satisfy the requirements of the solicitation.**

Note: Throughout the RFP documents, unless otherwise specified, reference to days will mean calendar days, not business days. In accordance with RFO 4.309(a) (1) the Government will retain its copy of all unsuccessful proposals.

2.1.2 System for Award Management (SAM).

Offerors will not be eligible to receive a contract award unless they are registered in SAM at the time of proposal submission and maintain an active record in SAM.

2.1.2.1 Contractor Teaming Arrangements & Joint Ventures

If an offeror is proposing under RFO Companion (FC) 9.000, where there is a joint venture or partnership, the combined entity shall be registered in SAM, and the SF-1449 must reflect the combined entity as the Prime.

Offerors shall provide Teaming Agreements in accordance with Volume III, Section 4.

2.2 Proposal Submission Instructions for Bidscale

Proposals must be submitted electronically via a secure online submission portal by **April 21, 2026 at 4:00 PM Eastern Time**. Bidscale aids the Government in evaluating acquisitions and reduces submission rounds through a structured submission process for proposal materials. The submission portal is a tool used solely to receive and evaluate proposals for this solicitation. Only Government signed documents, including evaluation reports and contracts are considered as the official record for contractual purposes.

1. Digital Submission Portal Access:

Offerors wishing to submit a proposal must first request a user account to access the digital submission portal. To request an account, please send an email to customersuccess@bidscale.com. The email must include the following information:

- a. Subject Line: Submission Portal Account Creation
- b. First Name
- c. Last Name
- d. Email Address
- e. Company Name
- f. Solicitation Name: PEO DHMS Deployment Solutions

Please allow at least 72 hours for account creation before the submission deadline. Once the account is created, offerors will receive a confirmation email with login instructions. Offerors may designate both a primary and backup user account. As a best practice, offerors are encouraged to use one user to complete the final submission to avoid partial uploads..

2. Upon successful account creation, proposals can be submitted through the link sent to the requesting user:

- a. Supported web browsers include Chrome, Edge, and Firefox.
- b. The proposals must follow the format and guidelines outlined in 52.212-1 of the solicitation document.
- c. All required documents and attachments must be included. Submissions not fully uploaded or submitted will not be considered.
- d. You are able to resubmit your proposal documents up until the above deadline.

3. Confirm receipt of a confirmation email for your submission

Upon submission, you will receive a confirmation email from Bidscale acknowledging receipt of your proposal. Bidscale is only authorized in a limited capacity to issue access to the submission portal and provide basic technical support with its utilization. If a confirmation email was not received or technical issues occur with the submission portal, contact Bidscale for assistance prior to the closing date and time at customersuccess@bidscale.com and copy the Contracting Officer and Contract Specialist at dha.ncr.co.mbx.cd-dhms-contracting@health.mil. Offerors are responsible for completing proposal submissions before the closing date and time; therefore, early submissions are encouraged.

4. Evaluation:

The Government reserves the right to utilize artificial intelligence (AI) tools to collect, summarize, and compile proposal and/or evaluation information during the evaluation process. AI tools will be used solely as an administrative aid. All evaluation judgments and source selection decisions will be made by Government personnel.

5. Disclaimer:

Proprietary information submitted in response to this solicitation will be protected from unauthorized disclosure as required by Subsection 27 of the Office of Procurement Policy Act as amended (41 U.S.C.423) (hereinafter referred to as "the Act") as implemented in the FAR. These companies are bound contractually by Organizational Conflict of Interest and disclosure clauses with respect to proprietary information. Contractor personnel will take all necessary action to preclude unauthorized use or disclosure of an offeror's proprietary data.

The exclusive responsibility for source selection will reside with the Government.

The procuring Contracting Officer is the sole POC to offerors any proposal related questions. Bidscale is not authorized to address any issues/questions related to contractor proposal submissions. Offerors are encouraged to review all instructions carefully and ensure full compliance with all requests for proposal requirements

to avoid any disqualification.

2.3 Communications and Solicitation Question Instructions

Communications between the Government and offerors will be controlled by the Contracting Officer and Contract Specialist. Offerors must submit all written proposal information via Bidscale Portal.

Solicitation questions must be submitted to the Contract Specialist attention via email dha.ncr.co.mbx.cd-dhms-contracting@health.mil. Solicitation questions must be submitted no later than **April 9, 2026 at 12:00 PM Eastern Time**. Questions provided using different means will not be considered. The Government will provide a response to the questions via SAM.gov. Responses may or may not require an amendment. Offerors are responsible to monitor SAM.gov for the most recent information for this solicitation.

2.3.1 Discussions

The Government will provide awards to all technically acceptable proposals. The Government intends to award without discussions or establishment of a competitive range; however, the Government reserves the right to hold discussions. If, during the evaluation period, it is determined to be in the best interest of the Government to hold discussions, offeror responses to Evaluation Notices (ENs) and the Final Proposal Revision (FPR) will be considered in making the source selection decision.

As the Government does not intend to hold discussions, offerors are advised to submit initial proposals that are well defined and clearly acceptable without additional information or substitute pages. Further, initial proposals should contain the offeror's best terms rather than relying on the potential for future negotiations.

2.3.2 Clarifications

Offerors may be given the opportunity to clarify certain aspects of the proposal or resolve minor or clerical errors. Such clarifications shall not be considered discussions. Offerors will not be given an opportunity to respond to any identified weaknesses or deficiencies or revise their proposals.

2.4 Amendments to Solicitation

If this RFP is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this request by the day and time specified in the amendment(s).

2.5 Period of Acceptance of Offers

The offeror agrees to hold its proposal firm for 180 calendar days from the date specified for receipt of offers.

2.6 Discrepancies

If an offeror believes that the requirements in these instructions contain an error, omission, or are otherwise unsound, the offeror shall immediately notify the Contracting Officer in writing via e-mail with supporting rationale as well as the remedies the offeror is asking the Contracting Officer to consider as related to the omission or error.

3.0 Proposal Content

The purpose of these instructions is to prescribe the format of proposals and describe the approach for the development and presentation of proposal information. Proposals shall be submitted in accordance with these instructions or will be considered non-compliant.

3.1 Page Limitations

All proposals must comply with the page limitations identified in the applicable tables below. Page limitations shall be treated as maximums. If exceeded, the excess pages will not be read or considered in the evaluation of the proposal. Title pages, cover pages, tables of contents, tab indexing, glossaries, and lists of tables and figures are not included in page limitations. Legible tables, charts, graphs, diagrams, graphics, and figures may be used to depict organizations, systems and layout, implementation schedules, plans, etc., when described under specific factors below. The use of tables, charts, graphs, diagrams, graphics and figures count as part of the page limits identified in Table 2 below.

3.2 Page Size and Format for Written Proposal Submission

A page is defined as one 8.5" x 11" electronic page with 0.5" margins and no smaller than a 10-point font size. The font shall be Times New Roman. NOTE: The font size limitation applies to all narrative elements, graphics, art, figures, imported charts, charts, and any other graphical representation that includes text (font type can be varied depending on the medium). Pages shall be numbered sequentially by volume. Pages shall include line numbering to support review and applies to all Volumes.

3.3 Title Page (not included in the page count)

Each volume must include a title page. The title pages must show:

- Solicitation Number, and
- Name, address, telephone numbers and e-mail address of the offeror

3.4 Cross-Referencing

The proposal volumes shall be written on a stand-alone basis so that its contents may be evaluated without cross-referencing to another volume. Information required for proposal evaluation which is not found in its designated volume will be assumed to have been omitted from the proposal.

3.5 Indexing

Each volume shall contain a detailed Table of Contents to delineate the subparagraphs within that volume. Tab indexing shall be used to identify sections and will not count against page limitations IAW paragraph 3.1.

3.6 Glossary of Abbreviations and Acronyms

Each volume shall contain a glossary of all abbreviations and acronyms used, with an explanation for each. As stated above in paragraph 3.1, glossaries do not count against the page limitations for their respective volumes.

3.7 Compliant

Documents submitted in response to this solicitation must be fully compliant to and consistent with the terms and conditions of the solicitation or may result in being rejected as noncompliant and not being evaluated.

4.0 Proposal Instructions

Table 2 provides a list of each volume, documents, file type, maximum page limits, and file formats.

Table 2: Proposal Volumes

ITEM	ELECTRONIC FILE NAME	FILE TYPE	PAGE LIMITS
Volume I: Factor 1 - Challenge Scenario 1a	OfferorName_Factor1_ChallengeScenario1a	.pdf	8
Volume I: Factor 1 - Challenge Scenario 1b	OfferorName_Factor1_ChallengeScenario1b	.pdf	8
Volume II: Factor 2 - Supply Chain Risk Management Plan	OfferorName_Factor3_SupplyChain	.pdf	3
Volume III: Contract Documents			
Section 1: Cover Letter	OfferorName_CoverLetter	.pdf	1
Section 2: Organizational Conflict of Interest (OCI) Declaration and Disclosure	OfferorName_OCI	.pdf	UNL
Section 3: Support Contractor Proposal Access Consent Statement	Included in Cover Letter	N/A	N/A
Section 4: Teaming Agreements	OfferorName_TeamingAgreements	.pdf	UNL
Section 5: Pre-Award Identification and Assertion of Restrictions on Commercial Technical Data and Commercial Computer Software	OfferorName_Pre-AwardAssertions	.pdf	UNL

Section 6: Representation, Certification, & Other Statements	OfferorName_RepsAndCerts	.pdf	UNL
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*NOTE: Volumes shall consist of the information specified for each evaluation factor listed below. All documents shall be searchable and capable of using highlights and comment boxes. **File size shall not exceed 1.5 GB per file. No pricing information shall be included in Volumes I, II, and III.***

FACTOR 1: CHALLENGE SCENARIO

Offerors shall provide a (1) proposed Deployment Approach (A003) (Volume 1: Factor 1 - Challenge Scenario 1a) as well as a (2) proposed Deployment Approach (A003) (Volume 1: Factor 1 - Challenge Scenario 1b) based on both of the following scenarios.

The Program Executive Office Defense Healthcare Management Systems (PEO DHMS) is modernizing its global healthcare capabilities, which includes the multi-faceted deployment of DHMS products (Federal Electronic Health Record (EHR) and Operational Medicine (OpMed)). The objective is to create a secure, seamless, and interoperable health information ecosystem that supports warfighters from the point of injury in austere, forward-deployed locations to definitive care.

Offerors shall propose an innovative and scalable deployment plan addressing two interconnected lines of effort as outlined below. The proposed approach shall address hardware and/or component installation and configuration across various networks, continuous patient data access, and comprehensive user training tailored to the operational environment and a diverse user audience. Additionally, the plan shall incorporate proactive risk mitigation strategies to address deployment complexities and ensure mission success. Offerors shall document any assumptions made within their proposed approach.

1a) Federal EHR product modernization and deployment: This effort focuses on the full implementation of the Federal EHR at established, high-capacity treatment facilities.

Scope:

- One large accredited Outside Continental U.S. (OCONUS) medical center (250 beds), including two community hospitals (125 beds) and five associated out-patient clinics spread across multiple time zones with approximately 5,000 total users that includes foreign national employees and 50,000 beneficiaries.
- Services: Full-spectrum healthcare services are in scope, including inpatient, outpatient, acute, ambulatory, specialty, and dental care. This also includes all associated Revenue Cycle services such as billing, patient accounting, and referral management.
- Technical Environment: The solution must be integrated with a complex array of hardware, including medical devices and IT systems that require real-time, secure data exchange.

1b) OpMed products' modernization and deployment: This effort delivers mobile and interoperable OpMed solutions to medical forces in deployed and tactical environments in both the Continental U.S. (CONUS) and OCONUS. This includes theater hospitals, hospital ships, forward resuscitative sites, and submarines. These scalable deployments can occur concurrently across multiple sites, countries, or theaters, in remote or austere environments with each location receiving one or more products tailored to mission requirements. The deployment includes the OpMed product suite: Battlefield Assisted Trauma Distributed Observation Kit-Joint (BATDOK-J), Operational Medicine Care Delivery Platform (OpMed CDP), Theater Blood-Mobile (TBLD-M), and Medical Hub (MedHub).

Scope:

- Rapidly deploy globally to no less than five sites/units simultaneously across forward-deployed locations managed by multiple Services in EUCOM and INDOPACOM (Role 1-3) with uncertain schedule and complex infrastructure. This includes deployments from Naval vessels and field hospitals to forward resuscitative and enroute care teams
- Services & Interoperability: Full-spectrum healthcare services are in scope, including ambulatory care, emergency trauma, surgical stabilization, enroute care, behavioral health, forward resuscitative, ancillary services (pharmacy, lab, imaging), and blood inventory and management. A critical requirement is ensuring seamless data transmission through all roles of care and aggregating medical data for Command and Control Situational Awareness (C2SA) reporting.
- Technical Environment: The plan will address integration with complex Service-specific hardware and diverse Service networks for low-to-no-touch deployments, where the products may be remotely deployed and/or trained to the field in a disconnected, intermittent, and low-bandwidth (DIL) environment.

Note: For the purposes of the Challenge Scenario, the following terms are defined.

- Innovative: A new or significantly improved technology, process, or method as of the date of the submission of the proposal.
- Scalable: Resources can be quickly scaled up or down to match demand.
- Feasible: The ability to achieve deployment with the available resources, technology, time, and schedule. It is a pragmatic assessment of whether an idea can be successfully executed in the real world, while actively minimizing risk.
- Coherent: The approach is logical and understandable.

FACTOR 2: SUPPLY CHAIN RISK MANAGEMENT PLAN

In accordance with DFARS RFO Class Deviation 212.203, offerors shall submit a Supply Chain Risk Management Plan (Volume II). The plan must describe processes for identifying, assessing, and mitigating supply chain risks associated with hardware, software, and firmware, and confirm compliance with applicable DFARS 252.239-7017, DFARS 252.239-7018, FAR 52.204-8 Deviation, 52.240-90, and 52.240-91 requirements.

VOLUME III: CONTRACT DOCUMENTS

(1) Cover Letter

The Offeror's proposal shall include a cover letter on the Offeror's letterhead stationery and signed by an executive of the company who possesses authority to bind the Offeror contractually. The cover letter shall acknowledge receipt of all amendments (if any are issued) to the RFP and include signed copies of the SF 30. The submittal letter shall identify all enclosures being transmitted as part of the response to the RFP. The letter shall reference the RFP number and acknowledge that the Offeror is submitting an offer in response to the RFP. It shall state: (1) Commercial and Government Entity (CAGE) number, (2) Unique Entity Identifier (UEI), (3) Taxpayer Identification Number (TIN), (4) a statement that the proposal is valid 180 days past the estimated award date, (5) provide support contractor proposal

access content (see 3) Support Contractor Proposal Access Consent below), and (6) include a statement clarifying the extent to which AI was or was not used in preparation of the proposal.

(2) Organizational Conflict of Interest (OCI) Declaration and Disclosure

Offerors shall complete and submit Attachment 16, OCI Declaration and Disclosure, Notice of Organizational Conflict of Interest. In addition, the Offeror shall provide a complete list of all team members (including all subcontractors at all tiers) so the Government may perform an independent OCI assessment. In accordance with RFO 9.504, the Contracting Officer may withhold award from any Offeror when a conflict of interest is determined to exist that cannot be avoided or mitigated.

(3) Support Contractor Proposal Access Consent

Contractor support personnel from the below listed companies under existing PEO DHMS contracts will be used for administrative purposes only. This assistance will not include analyzing or evaluating proposals.

Table 3: Contractor Support Personnel - Administrative

Company	POC	Contact Information
Unison Global (aka Bidscale)	Ben Ro	Ben.Ro@unisonglobal.com
Unison Global (aka Bidscale)	Kelsey Fryling	Kelsey.Fryling@unisonglobal.com

Proprietary information submitted in response to this solicitation will be protected from unauthorized disclosure as required by Subsection 27 of the Office of Procurement Policy Act as amended (41 U.S.C. 423) (hereinafter referred to as "the Act") as implemented in the FAR. Contractor Support Personnel are bound contractually by Organizational Conflict of Interest and disclosure clauses with respect to proprietary information. Contractor personnel will take all necessary action to preclude unauthorized use or disclosure of an Offeror's proprietary data.

The offeror's Cover Letter (Volume III Section 1) to this solicitation MUST clearly state permission is granted allowing the contractor support identified above access to the contractor's proposal. Subcontractors that provide proposal information separate from the Prime contractor's proposal submittal shall clearly state permission is granted allowing the contractor support identified above access to the subcontractor's proposal in a cover letter or similar notification. The Offeror and its subcontractors may choose to execute a proposal access agreement with these support contractors. Failure to clearly state permission is granted for access to the contractor's proposal may result in the offer being deemed unacceptable and therefore ineligible for contract award.

The exclusive responsibility for source selection will reside with the Government.

(4) Teaming Agreements

Offerors shall include all executed Deployment Solutions teaming agreements. If an Offeror is proposing under RFO 9.104-3(c)(2), where there is a joint venture or partnership, the Government would expect that the combined entity be registered in SAM, and the contract document would reflect the combined entity as the Prime.

(5) Pre-Award Identification and Assertion of Restrictions on Commercial Technical Data and Commercial Computer Software

Offerors shall identify all commercial technical data, commercial computer software, and commercial computer software documentation in accordance with Addendum 3 - Pre-Award Identification and Assertion of Restrictions on Commercial Technical Data and Commercial Computer Software. The Government will consider this assertion as part of the offeror's responsibility.

(6) Representation, Certification, & Other Statements

The solicitation provides offerors Representation, Certification, & Other Statements. An offeror's current SAM record is preferred, and a submission is not required when the SAM record is current. Offeror shall submit requested representations and certifications only when missing from the SAM record.

(End of Provision)

52.216-1 Type of Contract. (Deviation)

(Feb 2026)

Type of Contract (Feb 2026) (Deviation)

The Government contemplates award of a **Firm Fixed Price (FFP), Multiple Award Contract (MAC)** contract resulting from this solicitation.

(End of provision)

52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns. (Deviation)

(Feb 2026)

NOTICE OF PRICE EVALUATION PREFERENCE FOR HUBZONE SMALL BUSINESS CONCERNS (FEB 2026) (DEVIATION)

(a) Evaluation preference. (1) Offers will be evaluated by adding a factor of 10 percent to the price of all offers, except-

- (i) Offers from HUBZone small business concerns that have not waived the evaluation preference; and
- (ii) Otherwise successful offers from small business concerns.

(b) *Waiver of evaluation preference.* A HUBZone small business concern may choose to waive the evaluation preference. If the concern waives the preference, the factor will be added to its offer for evaluation purposes.

☐ Offeror chooses to waive the evaluation preference.

(c) *Joint venture.* A HUBZone joint venture agrees that, in the performance of the contract, at least 40 percent of the aggregate work performed by the joint venture shall be completed by the HUBZone small business parties to the joint venture. Work performed by the HUBZone small business parties to the joint venture must be more than administrative functions.

(End of provision)

DFARS Clauses Incorporated by Full Text

252.204-7025 Notice of Cybersecurity Maturity Model Certification Level Requirements.

(Nov 2025)

NOTICE OF CYBERSECURITY MATURITY MODEL CERTIFICATION LEVEL REQUIREMENTS (NOV 2025)

(a) *Definitions.* As used in this provision, "controlled unclassified information (CUI)," "current," "Cybersecurity Maturity Model Certification (CMMC) status," "Cybersecurity Maturity Model Certification unique identifier (CMMC UID)," "Federal contract information (FCI)," and "plan of action and milestones" have the meaning given in the Defense Federal Acquisition Regulation Supplement 252.204-7021, Contractor Compliance With the Cybersecurity Maturity Model Certification Level Requirements, clause of this solicitation.

(b)(1) *Cybersecurity Maturity Model Certification (CMMC) level.* The CMMC level required by this solicitation is: **CMMC Level 2 (C3PAO)**. This CMMC level, or higher (see 32 CFR part 170), is required prior to award for each contractor information system that will process, store, or transmit Federal contract information (FCI) or controlled unclassified information (CUI) during performance of the contract.

(2) The Offeror will not be eligible for award of a contract, task order, or delivery order resulting from this solicitation if the Offeror does not have, for each of the contractor information systems that will process, store, or transmit FCI or CUI and that will be used in performance of a contract resulting from this solicitation-

(i) The current CMMC status entered in the Supplier Performance Risk System (SPRS) (<https://piee.eb.mil>) at the CMMC level required by paragraph (b)(1) of this provision; and

(ii) A current affirmation of continuous compliance with the security requirements identified at 32 CFR part 170 in SPRS.

(c) *Plan of action and milestones.* If the Offeror has a CMMC Status of Conditional, the Offeror shall successfully close out a valid plan of action and milestones (32 CFR 170.21) to achieve a CMMC Status of Final.

(d) *CMMC unique identifiers.* The Offeror shall provide, in the proposal, the CMMC unique identifier(s) (CMMC UIDs) issued by SPRS for each contractor information system that will process, store, or transmit FCI or CUI during performance of a contract, task order, or delivery order resulting from this solicitation. The Offeror also shall update the list when new CMMC UIDs are generated in SPRS. The CMMC UIDs are provided in SPRS after the Offeror enters the results of self-assessment(s) for each such information system.

(End of provision)

252.209-7012 Prohibition Relating to Conflicts of Interest in Consulting Services-Certification.

(Oct 2025)

PROHIBITION RELATING TO CONFLICTS OF INTEREST IN CONSULTING SERVICES-CERTIFICATION (OCT 2025)

(a) *Definitions.* As used in this provision-

"Consulting services" means advisory and assistance services, except that "consulting services" does not include the provision of products or services related to-

- (1) Compliance with legal, audit, accounting, tax, reporting, or other requirements of the laws and standards of countries; or
- (2) Participation in a judicial, legal, or equitable dispute resolution proceeding.

"Contract oversight entity" means any of the following:

- (1) The Contracting Officer.
- (2) The Contracting Officer's Representative.
- (3) The Defense Contract Management Agency.
- (4) The Defense Contract Audit Agency.
- (5) The DoD Office of Inspector General or any subcomponent of that office.

(6) The Government Accountability Office.

"Covered contract" means a DoD contract involving consulting services.

"Covered foreign entity" means any of the following:

(1) The government of the People's Republic of China, the Chinese Communist Party, the People's Liberation Army, the Ministry of State Security, or other security service or intelligence agency of the People's Republic of China.

(2) The government of the Russian Federation or any entity sanctioned by the Secretary of the Treasury under Executive Order 13662, Blocking Property of Additional Persons Contributing to the Situation in Ukraine.

(3) The government of any country, if the Secretary of State determines that such government has repeatedly provided support for acts of international terrorism, pursuant to any of the following:

(i) Section 1754(c)(1)(A) of the Export Control Reform Act of 2018 (50 U.S.C. 4318(c)(1)(A)).

(ii) Section 620A of the Foreign Assistance Act of 1961 (22 U.S.C. 2371).

(iii) Section 40 of the Arms Export Control Act (22 U.S.C. 2780).

(iv) Any other provision of law.

(4) Any entity included on any of the following lists maintained by the Department of Commerce (see the Export Administration Regulations at 15 CFR subchapter C):

(i) The Entity List in supplement no. 4 to 15 CFR part 744.

(ii) The Denied Persons List as described in 15 CFR 764.3(a)(2).

(iii) The Unverified List in supplement no. 6 to 15 CFR part 744.

(iv) The Military End User List in supplement no. 7 to 15 CFR part 744.

(5) Any entity identified by the Secretary of Defense pursuant to section 1237(b) of the National Defense Authorization Act for Fiscal Year 1999 (Pub. L. 105-261; 50 U.S.C. 1701 note).

(6) Any entity on the Non-Specially Designated Nationals Chinese Military-Industrial Complex Companies List maintained by the Office of Foreign Assets Control of the Department of the Treasury under Executive Order 14032, Addressing the Threat From Securities Investments That Finance Certain Companies of the People's Republic of China.

(b) *Prohibition.* DoD cannot award to the Offeror a contract assigned a North American Industry Classification System code beginning with 5416 if the Offeror-

(1) Cannot certify that neither the Offeror nor any of its subsidiaries or affiliates hold a contract or subcontract that involves consulting services with one or more covered foreign entities; and

(2) Does not maintain a conflict-of-interest mitigation plan as described in paragraph (d) of this provision.

(c) *Certification.* The Offeror certifies that-

(1)(i) It does ☐ does not ☐ hold a contract or subcontract that involves consulting services with one or more covered foreign entities; and

(ii) Its subsidiaries or affiliates do ☐ do not ☐ hold a contract or subcontract that involves consulting services with one or more covered foreign entities; and

(2) It does ☐ does not ☐ maintain a conflict-of-interest mitigation plan described in paragraph (d) of this provision.

(d) *Conflict-of-interest mitigation plan.* If the Offeror answered in the affirmative in paragraphs (c)(1) and (2) of this provision, then the Offeror shall submit its conflict-of-interest mitigation plan to the Contracting Officer for approval. The Offeror may contact the Contracting Officer for guidance on submitting the Offeror's conflict-of-interest mitigation plan.

(1) The Offeror's conflict-of-interest mitigation plan shall be auditable by a contract oversight entity and shall include-

(i) An identification, unless otherwise prohibited by law or regulation, of any covered contracts of the Offeror or its subsidiaries or affiliates with a covered foreign entity. If the Offeror is unable to identify one or more covered foreign entities due to confidentiality obligations, the Offeror shall identify such entities as a covered foreign entity;

(ii) A written analysis, including a course of action for avoiding, neutralizing, or mitigating the actual or potential conflict of interest of such a covered contract;

(iii) A description of the procedures by which the Offeror or its subsidiaries or affiliates will ensure that individuals who will perform the scope of a covered contract will not, for the duration of such contract, also provide any consulting services to any covered foreign entity; and

(iv) A description of the procedures by which the Offeror or its subsidiaries or affiliates will submit to the contract oversight entities a notice of an unmitigated conflict of interest with respect to a covered contract within 15 days of determining that such a conflict has arisen.

(2) The Contracting Officer will incorporate the Offeror's approved conflict-of-interest mitigation plan into any contract awarded to the Offeror resulting from this solicitation.

(End of provision)

252.215-7008 Only One Offer.

(Dec 2022)

ONLY ONE OFFER (DEC 2022)

(a) *Cost or pricing data requirements.* After initial submission of offers, if the Contracting Officer notifies the Offeror that only one offer was received, the Offeror agrees to-

(1) Submit any additional cost or pricing data that is required in order to determine whether the price is fair and reasonable (10 U.S.C. 3705) or to comply with the statutory requirement for certified cost or pricing data (10 U.S.C. 3702 and FAR 15.403-3); and

(2) Except as provided in paragraph (b) of this provision, if the acquisition exceeds the certified cost or pricing data threshold and an exception to the requirement for certified cost or pricing data at FAR 15.403-1(b)(2) through (5) does not apply, certify all cost or pricing data in accordance with paragraph (c) of DFARS provision 252.215-7010, Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data, of this solicitation.

(b) *Canadian Commercial Corporation.* If the Offeror is the Canadian Commercial Corporation, certified cost or pricing data are not required. If the Contracting Officer notifies the Canadian Commercial Corporation that additional data other than certified cost or pricing data are required in accordance with DFARS 225.870-4(c), the Canadian Commercial Corporation shall obtain and provide the following:

(1) Profit rate or fee (as applicable).

(2) Analysis provided by Public Works and Government Services Canada to the Canadian Commercial Corporation to determine a fair and reasonable price (comparable to the analysis required at FAR 15.404-1).

(3) Data other than certified cost or pricing data necessary to permit a determination by the U.S. Contracting Officer that the proposed price is fair and reasonable **historical data, cost build-up, or similar information as requested by the Contracting Officer.**

(4) As specified in FAR 15.403-3(a)(4), an offeror who does not comply with a requirement to submit data that the U.S. Contracting Officer has deemed necessary to determine price reasonableness or cost realism is ineligible for award unless the head of the contracting activity determines that it is in the best interest of the Government to make the award to that offeror.

(c) *Subcontracts.* Unless the Offeror is the Canadian Commercial Corporation, the Offeror shall insert the substance of this provision, including this paragraph (c), in all subcontracts exceeding the simplified acquisition threshold defined in FAR part 2.

(End of provision)

Evaluation Factors for Award

FAR Clauses Incorporated by Full Text

52.212-2 Evaluation-Commercial Products and Commercial Services. (Deviation) (Tailored)

(Feb 2026)

52.212-2 EVALUATION--COMMERCIAL ITEMS (FEB 2026) (TAILORED)

1.0 Basis for Contract Award

The Government intends to make an Indefinite Delivery, Indefinite Quantity (IDIQ) multiple award contract to each and all qualifying offerors as defined in RFO 2.201 whose offer conforms to the solicitation requirements and is determined to be a responsible offeror in accordance with RFO Part 9 - Contractor Qualifications. The Government will evaluate each proposal in accordance with the evaluation criteria. A proposal will be considered "Technically Acceptable" if it receives a rating of "Acceptable" in all evaluation factors below. A proposal that receives a rating of "Unacceptable" in any factor will be deemed technically unacceptable and ineligible for award, except as provided under Factor 1 (Challenge Scenario) with respect to the Challenge Scenarios 1a and 1b. For purposes of Factor 1 (Challenge Scenario), an offeror will be rated Acceptable if it receives an Acceptable rating in either Challenge Scenario 1a, Challenge Scenario 1b or both. Offerors that receive an Unacceptable rating in either 1a or 1b, yet receive an Acceptable rating in either 1a or 1b will remain eligible for award.

All awardees under this solicitation will be eligible to compete for any task order issued within the scope of this resulting IDIQ contract. The Government does not intend to establish pools, channels, or scope-based limitations on task order competition based on the Challenge Scenario evaluation results.

This source selection will be conducted in accordance with RFO Part 12, Acquisition of Commercial Products and Commercial Services and RFO Part 15, Contracting by Negotiation, as supplemented by the Defense Federal Acquisition Regulation Supplement (DFARS) or DFARS RFO Class Deviation as applicable. These regulations are available electronically at <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide>.

Note that the Government will not award a contract to an offeror whose team has an unmitigated organizational conflict of interest. Evaluation of an offeror's proposal will be based on the information presented in the proposal. Proposals which are unsubstantiated in terms of technical or schedule commitments, may be deemed to be reflective of an inherent lack of technical competence, or indicative of a failure to comprehend the complexity and risks of the proposed work and may be grounds for rejection of the proposal or may be considered a performance risk, impacting the rating under the applicable Factor.

The Government will not award contract(s) to offerors that do not provide acceptable documents as required in Volume III. Issues involving compliance or standards of responsibility may be resolved in clarifications with the process outlined at 52.212-1 paragraph 2.3.2 and will not trigger the requirement for discussions with all offerors. If the Government is unable to determine the offeror compliant in accordance with the solicitation, and responsible in accordance with RFO Part 9 - Contractor Qualifications, as applicable, the offer will be rejected.

2.0 Evaluation Factors

The following evaluation factors will be used to evaluate each proposal. Award will be made to each and all qualifying offerors whose proposals are determined to be Technically Acceptable and whose firms are determined to be responsible.

Factor 1: Challenge Scenario

Factor 2: Supply Chain Risk

Offerors rated with Unacceptable in any Factor will not be eligible for award. For clarity, if an offeror addresses Challenge Scenario 1a and 1b and receives an Acceptable in one scenario, however, receives an Unacceptable in the second scenario, the offeror is still technically acceptable in Factor 1 and will remain eligible for award.

FACTOR 1: CHALLENGE SCENARIO

Table 4: Factor 1 Challenge Scenario Acceptable/Unacceptable Ratings

Rating	Definition
Acceptable	The proposal addresses all required minimum elements of the challenge scenario and presents a feasible, coherent, and scalable approach. The Government has a reasonable expectation of successful performance. Any identified risks are manageable and do not indicate unsuccessful performance is likely. Offerors must receive at least an Acceptable rating in either 1a or 1b to be considered Acceptable for this factor.
Unacceptable	The proposal fails to address one or more of the required minimum elements of the challenge scenario, contains material deficiencies, or presents performance risks that indicate unsuccessful performance is likely. Offerors who receive an Unacceptable rating in both 1a and 1b are considered Unacceptable for this factor.

The Government will conduct two separate evaluations of the offeror's proposed Deployment Approach (A003): one for Volume 1: Factor 1 - Challenge Scenario 1a and one for Volume 1: Factor 1 - Challenge Scenario 1b. To be rated **Acceptable**, the offeror's proposal must meet the following minimum requirements for each applicable sub-factor:

Sub-Factor 1: Program Management and Governance

The proposal must describe a program management and governance approach that:

1. Includes a framework for managing, monitoring, and controlling all activities described in the challenge scenario.
2. Addresses procedures for governance, risk management (identification, analysis, and mitigation), integrated scheduling, quality control, and stakeholder communication.
3. Addresses the unique management challenges of supporting concurrent deployments in fixed-facility (OCONUS medical center) (1a) or operational/expeditionary environments (1b).

Sub-Factor 2: Deployment and Integration

The proposal must describe a deployment and integration approach that:

1. Includes a methodology for site preparation and configuration (including data collection, migration, and integration).
2. Includes a methodology for ensuring ongoing compliance with accrediting agencies (as it applies to 1a).
3. Addresses integration with hardware, medical devices, and networks (as it applies to 1a).
4. Addresses integration with hardware, medical devices, and diverse Service-specific networks (as it applies 1b).
5. Includes a methodology for deployment in disconnected, intermittent, and low-bandwidth (DIL) environments (as it applies to 1b).
6. Presents at least one option for a low-to-no-touch remote deployment for OpMed products (as it applies to 1b).

Sub-Factor 3: Continuity and Logistics

The proposal must describe a continuity and logistics approach that:

1. Addresses how the continuity of healthcare delivery documentation will be maintained during deployment to minimize disruption to patient care.
2. Addresses personnel travel requirements, including adherence to Status of Forces Agreements (SOFA) where applicable.
3. Includes a methodology for network integration of all required hardware (as it applies to 1a).
4. Includes a methodology for supply chain management (as it applies to 1a).
5. Includes a methodology for managing the procurement, delivery, and tracking of hardware (as it applies to 1a).

Sub-Factor 4: Training

The proposal must describe a training approach that:

1. Is scalable for a diverse user base across multiple time zones and locations.
2. Leverages existing curriculum.
3. Provides role-based training.
4. Includes methods for assessing user training performance and overall training effectiveness.
5. Protects Personally Identifiable Information (PII) and Protected Health Information (PHI).
6. Presents at least one option for 1a and three options for 1b for low-to-no touch remote training delivery.

Sub-Factor 5: User Adoption and Change Management

The proposal must describe a user adoption and change management approach that:

1. Fosters and measures successful user adoption of the new product(s).
2. Details a methodology for proactive stakeholder engagement, strategic communications to drive user buy-in, and manage resistance to change.

The evaluation of Challenge Scenarios 1a and 1b is conducted solely to determine Factor 1 Acceptability at the IDIQ level and does not restrict task order competition eligibility.

FACTOR 2: SUPPLY CHAIN RISK MANAGEMENT PLAN

Table 5: Factor 2 Acceptable/Unacceptable Ratings

Rating	Definition
Acceptable	Proposal meets the minimum requirements of the solicitation.
Unacceptable	Proposal does not meet the minimum requirements of the solicitation.

The Government will evaluate the offeror's approach to mitigating supply chain risk for information technology supporting a covered system. To be rated Acceptable the offeror's proposal must meet the following minimum requirements provide a feasible and coherent approach to identify, assess, and mitigate supply chain risks associated with hardware, software, and firmware, and confirm compliance with DFARS 252.239-7017, DFARS 252.239-7018, FAR 52.204-8 Deviation, 52.240-90, and 52.240-91 requirements.
(End of Provision)

52.217-5 Evaluation of Options. (Deviation) (Tailored)

(Feb 2026)

Evaluation of Options (Feb 2026) (Deviation)*

Except when it is determined in accordance with FAR 17.202(b) not to be in the Government's best interests, the Government will evaluate offers for award purposes by adding the total price for all options to the total price for the basic requirement. Evaluation of options will not obligate the Government to exercise the option(s).

**This clause may apply as identified in applicable task orders.*

(End of provision)